

PERFORMANCE WORK STATEMENT
STEVEDORING AND RELATED TERMINAL SERVICES
INLAND WATERWAYS OF
MANNHEIM AND REGENSBURG PORTS
GERMANY



Stevedoring and Related Terminal Services
Performance Work Statement

For

Military Operations Terminal

838th US Army Transportation Battalion
Military Army Transportation Command (ARTRANS)

21 April 2026

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1. BACKGROUND AND SCOPE

Background. The Military Surface Deployment and Distribution Command (ARTRANS), headquartered at Scott AFB, IL is an operational-level Army force designated by the Secretary of the Army (SECARMY) as the Army Service Component Command (ASCC) of the United States Transportation Command (USTRANSCOM) and a major subordinate command of Army Materiel Command (AMC). ARTRANS is responsible for providing coordination worldwide for origin to destination surface traffic management support; coordinates surface and multimodal transportation contracted functions for all DOD (and other U.S. Government entities, as authorized, and designated multinational and interagency elements). Since its establishment in 1965, ARTRANS has played a vital role in our nation’s defense by providing support to the warfighter to every war, major contingency, training exercise and humanitarian relief operations where our Military forces are needed and deployed.

Scope of Service. Provide Stevedoring and Related Terminal Services (S&RTS) at the designated inland waterway port(s) of: Mannheim and Regensburg in connection with the import and export of Defense Transportation System (DTS) sponsored cargo. All tasks shall be completed per requirements stated through the Performance Work Statement (PWS) and in a manner consistent with the “Best Commercial Practices”. Other ports along the Rhine and Danube rivers may be added to this contract through contract modification as necessary.

1.2.1 S&RTS services will cover the full spectrum of managing US Military cargo (e.g. containers, vehicles, breakbulk, and rotary or fixed wing aircraft) transitioning through designated seaport. Operational tasks shall include, but are not limited to, all stevedoring and longshoring required for vessel, truck, and rail loading & discharging, port reception and disposition, cargo management staging, intra port transfers, cargo prep, Checking & Tallying (C&T), and handling & warehousing Government provided dunnage and tiedown materials.

1.2.1.1 Requirements include physical security, facilities, storage/staging, office space, office supplies, and provide documentation/reports for port operation expenses & reconciliation of services to include other related miscellaneous requirements as outlined in this PWS.

1.2.1.2 Contracted services shall include the capability to work multiple vessel(s) and vessel decks simultaneously, with terminal operations as described in this PWS's Area of Responsibility (AOR) 24-hours a day, seven (7) days per week, and 365 days per year at the Ports of Mannheim and Regensburg. Contracted services shall include the capability to work all classes of supply including military vehicles up to 150,00lbs, hazardous materials, as well as sensitive, controlled, refrigerated, and/or other general DOD cargo handled through all modes of transport.

1.2.1.3 All services in accordance with (IAW) the PWS require approval from the Contracting Officer (CO) or their appointed Contracting Officer's Representative (COR), and any work performed without authorization shall be at the Contractor's expense.

****NOTE:** See Section 6 for specific geographic locations and port specific requirements.

****NOTE:** Subsequent references to the COR throughout the PWS will also assume the Alternate Contracting Officer's Representative (ACOR) as well, unless otherwise specified.

1.2.1.4 The Contractor shall provide all the gear, MHE, materials, supplies, management, and sufficient amounts of qualified general & skilled labor to satisfy the full scope of operating inland waterway terminals for this contract. The Contractor shall make every effort to rectify any labor or Contractor Furnished Equipment (CFE) (i.e., MHE shortfalls), for which the Government will compensate the Contractor by applicable commodity and/or man-hour rates as designated by the Schedule of Rates (SOR).

1.2.1.5 The Contractor shall obtain written approval from the COR for all work, services, or other terminal operations for which a task order number and ordering template will be issued. The Contractor shall assume all expenses for any work performed outside of the contract or without prior written authorization from the COR.

2. GENERAL SECURITY REQUIREMENTS.

2.1 General security requirements of the Contractor defined within this section. Additional duties and requirements specific to the particular terminal(s) within the scope of this contract further defined in Section 6.2 - Port - Terminal Specific Requirements (security).

2.2 The overall classification of work associated with this contract is UNCLASSIFIED. Personnel assigned to this contract will not require access to Non-Secure Internet Protocol Router Network (NIPRNet) applications or UNCLASSIFIED Government systems, therefore not authorized to obtain a Common Access Card (CAC) or Alternative Smart Card Logon (ASCL) tokens.

2.3 Ground Rules and Constraints.

2.3.1 **Personnel Screening.** Contractor shall ensure its employees meet U.S. Government guidelines regarding foreign national employment by screening all employees for indications of criminal, terrorism, or threat-related activity or alliances detrimental to the United States of America or Host Nation.

2.3.1.2 The Contractor shall not employ any person under this contract convicted of any of these offenses or who presents any of these unfavorable behaviors or is simultaneously an employee of the United States Government. Anyone refusing screening shall result in denial of applicant's access for employment and/or termination. If employment or continued employment of any

Contractor employee is prejudicial to the interests or endangers the security of the United States of America, the Contractor shall make the necessary changes to remove those employees from interacting or engaging with US personnel.

2.3.1.3 Completed Screening. Once the screening process is completed the results and the applicant request for clearance approval, will be submitted to the 838th for vetting through the 598th Trans brigade S-2 to ensure investigative and clearance requirements were obtained before the start date of the contract for review. Any derogatory information may result in the applicant's access denied. Screening will be completed prior to any badge issuance. Screening maintains compliance with enhanced force protection measures through document examination, verification, biographical, and security interviews. Applicants denied access due to derogatory information may file an appeal to the Contracting Officer and 598th BDE for review.

2.4 **Persons Excluded from the Premises.** The Contractor shall not allow any person(s) banned by any authority from the premises to have access to terminal facilities, equipment, or other material related to Government operations.

2.5 **Persons with Restricted Duties.** The Contractor shall not allow a person restricted by any authority from certain equipment or areas to operate that equipment or enter areas as designated by the COR.

2.5.1 The Contractor personnel shall read and comply with applicable the Department of Defense security regulations, policies, and procedures for access to installations and facilities.

2.5.2 The Contractor shall comply with all requirements associated with Installation Access Control. The Government is not liable for any costs associated with performance delays due solely to the Contractor's failure to comply with the applicable Port, Facility or Installation Access Control processing requirements.

2.5.3 Upon termination or completion of this contract, the Contractor shall surrender all Government supplies, materials, and equipment to the COR. In addition, the Contractor shall turn in any security badges issued to the COR on the last day of the contract or upon any termination/reassignment of a contract employee.

2.6 **Derogatory Information.** If the Government notifies the Contractor that employment of any Contractor employee is prejudicial to the interests or endangers the security of the United States of America, the Contractor shall remove and bar that person from Military operations. This includes security deviations/incidents and credible derogatory information on contract members during the course of the contract period. The Contractor receiving award of this contract shall make any changes necessary in the appointment(s).

2.6.1 The Contractor's personnel will immediately be escorted off the premises. The contractor shall ensure the roles/privileges assigned to contractor employees on the Government computing platforms are limited to the roles/privileges essential to that individual's performance of his/her assignments. These roles/privileges can be limited or revoked by the Government for any reason.

2.6.2 **Operations Security (OPSEC).** Protecting critical information (friendly activities, intentions, capabilities, or limitations) is crucial to prevent adversaries from gaining advantage. Therefore, contractors must adhere to OPSEC requirements throughout the contract lifecycle. All information provided is for official use only. Additionally, mandatory initial and annual OPSEC training is required after contract award for all contractors working on-site at a DoD facility or off-site accessing a Federally controlled information system. Proof of completion must be

available to the COR/CO. Training can be accessed at the following website: (<https://securityawareness.usalearning.gov/opsec/index.htm>). Immediately consult the contracting office's OPSEC coordinator regarding the ARTRANS Critical Information and Indicators List (CIIL) and any OPSEC questions. Protect critical information (e.g., mission details, units, cargo) from unauthorized disclosure and coordinate with the government to minimize shared information. Report suspected/known compromises immediately to the COR and security office. Safeguard information (including FOUO and CUI) per the CIIL using measures like encryption; locked storage; restricted distribution; secure destruction; limiting verbal discussions; avoiding unencrypted phones/foreign mail; prompt document retrieval; cover pages; and minimizing public disclosure. Contact the COR/CO for clarification.

2.7 Threat Related Incidents. Persons employed by the Government will report threat-related incidents, behavioral indicators, and other matters of Counterintelligence (CI) interest specified in AR 381-12, Chapter 3, to the Facility Security Officer, the nearest Military CI Office, the Federal Bureau of Investigation, or the Defense Counterintelligence and Security Agency.

2.8 Vendor Threat Mitigation. The Contractors shall submit a semi-annual report to the CO for each first-tier foreign transportation service provider, operating as a separate legal entity, contracting directly with Contractor or its commonly owned legal affiliate, which has employees who may have physical contact with USG shipments in the ordinary course of contract performance. See Appendix E for further instruction for this requirement. Compensation for services defined in this paragraph are included in all commodity rates established in the SOR.

2.9 Port or Base Access. The Contractors employees to include subcontractors will comply with base access and control procedures, personnel not cleared for entry into secured working area/s will be denied entry, and the USG shall not be liable for wages of such denied personnel.

2.10 Vehicle Identification. The Contractor shall obtain installation/port access clearance for any vehicles used in performance of this contract. The Contractor shall submit a comprehensive list of vehicles required during the duration of this contract immediately upon award to the COR in order to obtain access clearance. The list shall identify vehicle type, license plate, and owner/company name. Personal Owned Vehicles (POV) shall not be authorized entry in and around USG equipment unless identified as official vehicles critical to the success of the mission. When submission of a new vehicle is necessary, only substitutions are acceptable to maintain a reasonable number of cleared vehicles authorized entry.

2.10.1 Security Regulation Guidance found at <https://www.esd.whs.mil/dd/>. Select under "DOD Issuances" the following DOD Instructions and Manuals.

2.11 Privacy Information. Contractor and COR/ACOR, must ensure all personnel information collected, maintained, used or disseminated is relevant and necessary to accomplish the Contract. Contractor will collect information to the greatest extent practicable directly from and inform the individual of the reason collection of the information is required; authority for collection; who and for what purpose; whether disclosure is mandatory or voluntary; and the impact of not providing the information. Contractor and COR/ACOR will establish appropriate administrative, technical and physical safeguards, for protection of paper, documentation involved, to ensure security of records and prevent compromise or misuse during storage, transfer, or use, including transiting authorized alternative worksites. Privacy information collected, must comply with host nation, DoD and Army Privacy Act regulations, whichever is more stringent.

2.12 **Badges.** All permanent and temporary personnel, hired directly or indirectly by the Contractor performing work under this contract, shall have in their possession, and display when required, a current Workers Identification badge issued by each port where military operations is being performed. The Contractor's management shall ensure compliance with this requirement.

2.12.1 Upon termination or completion of this contract, the Contractor shall surrender all Government supplies, materials, and equipment to the COR. In addition, the Contractor shall turn in any security badges the government issued to the COR on the last day of the contract or upon any termination/reassignment of any employee or subcontractor.

2.13 **Cyber Security.** The services designated under this contract are "operationally critical support" as defined in Defense Federal Acquisition Regulation Supplement (DFARS) 252-204-7012 Safeguarding Covered Defense Information and Cyber Incident Reporting.

3.0 GENERAL SAFETY REQUIREMENTS

3.1 General Safety Requirements of the Contractor defined within this section. Additional duties and requirements specific to the particular terminal(s) within the scope of this contract further defined in Section 6.0 –Port - Terminal Specific Requirements (safety). All Army Safety Regulations can be found at <http://armypubs.army.mil>

3.2 **Enforcing and Monitoring Safety.** The Contractor shall comply with, enforce and monitor applicable host nation, international, local installation and ARTRANS Transportation Battalion safety and fire regulations. The COR will log any discrepancies within the defined quality performance process. The Contractor shall establish and maintain an effective and comprehensive safety program. The Contractor shall support the ARTRANS Emergency Disaster Plan. The Contractor shall acquire, maintain, and require the use of safety equipment, personal protective equipment (PPE) (29 CFR 1918.101-106) and devices necessary to protect employees at all time while working any USG operation on the port, terminals or vessel(s).

3.3 Safety Program

3.3.1 **Safety Program Representative.** The Contractor shall provide as part of its management staff a dedicated Safety Program Representative (SPR) and/or alternants as needed for each operation. The Contractor shall ensure the SPR is accessible and on site to observe all USG Operations contractor personnel to include sub-contractors to ensure the Contractor's safety practices are monitored, damage/injury is investigated and make corrections when deviations or departures from safety are observed.

3.3.2 **Accident Prevention/Safety Program.** The Contractor shall provide to the COR within five (5) calendar days of contract award date, their written plan for Accident prevention/safety program, for port/terminal operations at ports of Mannheim and Regensburg, per Federal Acquisition Regulations (52.236-13 Accident Prevention).

3.3.3 **Safety Stop.** The USG reserves the right to call "safety stop" of the Contractor's operations when/if the Safety Officer, COR, or other USG representative observes or reports unsafe practices, safety infractions or safety violation(s); whereas harm to life, damage to property, or unsafe practices are present/possible. The COR shall inform the contractor to "stop work" directing the contractor to "stand-by". The Contractor's operations shall not resume until all practices, infraction or violations have been addressed and corrected and/or revises their methods of operation to correct the safety issue and brings together all personnel for a safety briefing to the 598th Safety Officer or their representative satisfaction. The USG will not

compensate the Contractor for any time spent on “stand-by” or lost time incurred due to safety violation/infraction. The USG may hold the Contractor liable for any costs incurred to the USG, resulting from operations halted due to the Contractor’s unsafe practice or violation.

3.3.4 Safe Working Load Lift trucks and Cranes. The Contractor shall adhere to local authority and DoD standards for “safe working load” for all Contractor Furnished Equipment & Material Handling Equipment CFE/MHE, to include all cranes (ship or shore). The Contractor shall adhere to all safety requirements when lifting cargo. The Contractor shall ensure all CFE/MHE driver/operators are certified and trained as per HN requirements. The COR or other designated USG personnel may stop any/all driver/operators to assess whether they are certified or trained on the equipment they are operating.

3.3.5 Personnel Protective Equipment (PPE). The Contractor shall ensure all Contractor personnel, to include its subcontractors, have and/or wear proper PPE. The Contractor shall provide to the COR a Safety/Hazard analysis that defines the proper PPE required for use and/or worn when engaged in terminal or port operations. The safety/hazard analysis shall be provided to the COR within two (2) calendar days of contract award, whereas the COR and Safety Officer will monitor, and report PPE usage based on the Safety/Hazard analysis. The Contractor shall provide to the COR within two (2) calendar days a new/updated Safety/Hazard analysis if/when changes in operational scope occur. The Contractor shall conduct PPE/Hazard Analysis in English language and language understood by the labor/workers.

3.4 Contractor Safety Briefings. The Contractor shall, as part of all commodity and extra labor operations, conduct and document safety briefings for all workers by name prior to all vessel, terminal service/operations and at each shift change. The Contractor shall provide a mandatory safety briefing to new personnel as they are added. The Contractor shall conduct safety briefings with the presence of a USG representative. The COR or ARTRANS Safety Officer may also participate in these briefings. The job Safety/Hazard analysis should be the basis for safety brief content. See FAR 52.236 (f)(1) for guidance. Safety briefings conducted by the Contractor shall relate to the type of operation (e.g., truck, vessel, rail, yard, crane, ammunition etc.), and at a minimum, must meet local authority and/or DOD regulatory guidance or host nation requirements. The Contractor shall conduct safety briefings in English and in a language understood by the labor/workers.

3.5 Safe Working Load. The Contractor shall adhere to local authority and DoD standards for “Safe Working Load” for all MHE and lifting gear, to include all cranes (shore or ship), when lifting cargo. Reference 29 CFR§§ 1917.42 Miscellaneous auxiliary gear.

3.6 USG Safety Briefing. The USG, at its discretion, may conduct additional safety briefings when necessary and per local Commander’s guidance. The USG’s safety briefing may include information from above or other necessary Command-related information or additional safety concerns. Compensation (unless for safety violation) for the Contractor’s labor shall be placed on detention and compensated per Schedule 3B of the SOR. No compensations shall be made to the contractor for “safety Stop/violations”.

3.7 Reporting Accidents, Injuries and Damage

3.8 Reportable Accident, Injuries or Damage Reporting. The USG requires reporting of any situation that result in injury or death to any personnel, or damage to USG cargo or commercial property. The Contractor shall immediately notify the COR of any incident and/or

accident that results in injury or death to any personnel, damage to USG cargo, commercial property, during or arising from performance under this contract. The Contractor shall submit accident investigation reports to the COR and USG Safety Officer as mandated in Reporting Timeline Requirements listed below.

3.8.1 The Contractor shall submit documentation to the COR verifying the qualifications and task training for each employee involved in the incident/accident.

3.8.2 The Contractor shall submit all maintenance records for CFE/MHE involved in any accident or incident involving injury.

3.8.3 The Contractor shall assist the USG during any incident and/or accident investigation.

3.8.4 The Contractor shall report overall accident rate annually.

3.9 **Preserve Critical Evidence.** The Contractor shall secure the accident location and preserve critical evidence. The Contractor shall allow USG personnel access to the location, all evidence, and all Contractor-employee witnesses, to include operators involved in the accident. The Contractor shall ensure that operations do not resume until cleared by the COR, USG Safety Officer, and local authorities

3.10 **Reporting Timelines and Requirements**

3.10.1 **Within eight (8) Hours:** Accident Information required from Contractor of incident if severe damage to equipment, hospitalization of employees or loss of life:

- Date and time of incident
- Location of incident
- Brief synopsis of the accident, to include injured personnel, equipment damaged and description of activity during the incident
- Supervisor name and contact information
- List of employees involved or who witnessed the incident
- Extent of injuries and if medical treatment was administered

3.10.2 **Within 24 hours:** Accident Information required from Contractor

- Information from 3.5.3.1
- Status of injured personnel
- Pictures of affected equipment
- Training certificates/licenses for personnel involved in incident
- Maintenance records of equipment involved in incidents

3.10.3 **Within 30 Calendar Days (or sooner if investigation is complete) Information required from Contractor**

- Findings identifying the root cause(s) of the accident
- Corrective actions taken to prevent recurrence
- Follow-on status of any injuries from 24-hour status
- Final incident report from Contractor's safety representative to COR

3.11 **Manning Traffic Control Points (TCPs).** The Contractor shall provide manned traffic control points to include equipping each TCPs with signal devices for day and night operations. Compensation for services defined in this paragraph are included in all commodity rates established in the SOR.

3.12 **Posted Speed Limits.** The Contractor shall enforce all posted port speed limits for all vehicle traffic per local port directives, The USG has further defined vehicle speed limits as follows for Military vessel/terminal operations at all piers/terminals/ports, (unless further defined) the maximum speed limits for vehicle(s) shall be inside a vessel, on vessel ramps, and/or dock/pier is <5 MPH (walking speed), maximum speed limits within staging areas, is <10 MPH or less, and for roadways to/from staging to vessel the maximum speed limit shall be 10 MPH, for CFE/MHE speed limit is 10 MPH or <5 MPH on vessels.

3.13 **Vehicle Safety.** During all operations, the Contractor shall not leave any vehicle (military or commercial) unattended when the engine is running, or if breaks are not operational.

3.14 **Fire Extinguisher & First Aid Kit.** The Contractor shall provide and ensure all CFE/MHE used in military operation shall have mounted fire extinguishers and First Aid kits with an up-to-date inspection sticker/documentation and inspected monthly.

3.15 **Vessel Safety.** During vessel operations, the Contractor shall not let vehicles remain idle across watertight door areas. Maintain only one vehicle at a time on vessel ramps. Test vehicle brakes before moving any vehicle.

3.16 The Contractor shall provide ramp guards stationed at all vessel ramps in use to direct traffic, monitor foot traffic, and alert personnel when vehicles are traversing ramps, all ramp guards shall have whistles and flashlights in addition to PPE. Compensation for services defined in this paragraph are included in all commodity rates established in the SOR. The government reserves the right to use its own personnel to man TCPs and are not required to use contractor labor for this task.

4.0 GENERAL CONTRACT ADMINISTRATION

4.1 General contract administration defined within this section. Additional duties and requirements specific to the particular terminal(s) within the scope of this contract further defined in Section 6.0 Port - Terminal Specific Requirements (administration).

4.1.2 **Port Licensing and Permits.** The Contractor or its named Subcontractor shall possess a valid and current Business License (BL) issued by the country of Germany, as well as a work permit issued by the applicable Port Authorities from the Host Nation country (OCONUS) as evidence that Contractor or its named Subcontractor(s) has legal right to work in/at the country/port designated within this PWS (see geographic info section 6.1). The Contractor shall provide documentation/copies (Prime and Subcontractor(s)) to the CO for record when awarded this contract.

4.2 **Subcontractors.** The Contractor shall require Subcontractors to comply with all applicable regulatory requirements of this contract. The Contractor shall include a clause in each applicable subcontract to require Subcontractor's cooperation and assistance in accident reporting and investigation.

**** NOTE:** Subsequent references to the Contractor shall imply their “employees”, unless otherwise specified.

4.3 Labor Rules & Agreements and Port Tariffs. The Contractor shall submit copies upon award of this contract to the USG of all current labor rules, labor agreements or Collective Labor Contract (CAL) (if applicable), and current year published port tariffs (English version). The Contractor shall also furnish updated information about specific changes to local work rules, labor agreements, and new port tariffs affecting USG cargo operations IAW the performance of this contract as they are available.

4.4 Port Services/Tariffs. The Contractor shall be responsible on behalf of the USG for cargo handling costs related to “handling and movement of USG cargo” associated to port offered services not associated to “vessel” i.e., berthing, wharfage, landing fees, husbandry, or other vessel charge/fees etc. All commodity rates applicable to this contract are inclusive of all labor, equipment and port handling/tariff costs related to the handling and movement of cargo.

4.4.1 The USG will not pay for or reimburse the Contractor for usage of port staging/storage free time, customs duties, taxes, and similar charges for which no services are received, or the USG is exempt from. The USG will only pay port tariffs fees/charges where the USG has requested and received those services. If the Contractor pays a tax, duty, customs fee, excise fee/tax, inspection fee, bond, or the like for which the USG is exempt, the Contractor is not entitled to reimbursement.

4.5 Contract Managers. The Contractor shall provide a contract manager(s) and at least two (2) alternates who shall be responsible for the performance level of the work. The Contractor shall provide telephone numbers for each of the contract manager(s) and their alternates where these individuals may be contacted during and after duty hours. The contract manager(s) shall have demonstrated experience in directing and managing long-shoring and stevedoring operations. The contract manager(s) and their alternates must be able to understand, read, write, speak, translate both English & German fluently.

4.5.1 Contract manager(s) and alternates shall have full authority to act and make financial decisions on behalf of the Contractor on all matters pertaining to the performance of services under this contract.

4.6 Multiple Work Sites. During the performance period of this contract, the Contractor shall work simultaneous cargo handling operations, at multiple work sites, to include, but not limited to, working vessel(s) operations (working multiple decks simultaneously), and performing reception and disposition services of rail, commercial truck(s), call forwarding & staging yards. The Contractor shall have their contract manager(s) or alternates present at each work site and accessible to the COR, at all times. At any other time (i.e., outside cargo operations) the contract manager(s) or designated alternate(s) shall be available to the COR by telephone.

4.6.1 The contract manager and alternates shall meet as necessary with the COR to discuss contract performance or other problem areas or issues.

4.6.2 The Contractor shall not remove or replace the contract manager or their alternates without informing the COR.

4.7 Ordering Services. The USG shall establish written procedures in advance for ordering all long-shoring and/or stevedoring services. The USG shall also set cut off times on or before which we may cancel ordered services and/or equipment free of charge and without liability of any kind. These procedures and cut-off times shall be provided within two (2) calendar days of contract award date. All longshoring and/or stevedoring services performed IAW this PWS will be ordered using a Task Order (TO) system. Task orders will be assigned a TO number and issued by an appointed OO to the Contractor and IAW Appendix C, Payment, Ordering, and Invoice Instructions.

4.8 Task Orders. All services shall be identified to the Contractor by the COR upon agreement, the COR will convey needed services to the OO. The OO will develop an “initial” commodity, man-hours, or miscellaneous cost TO estimate identifying all services agreed upon as soon as practicable but prior to the start date & time for each day S&RTS services are ordered.

4.8.1 The OO’s initial TO estimate will be processed and a Task Order number will be assigned/issued by G8 for that TO. Task orders will incorporate Terminal Services and Vessel work separately. Terminal services will be calculated by the documented week (Doc-Week (DW), Sunday – Saturday).

4.8.2 The Contractor has the sole responsibility to order all labor for the required TO work in sufficient quantities and classes to meet the agreed upon productively levels, and completion timelines. Should the Contractor mis-judges commodity work completion timeline and advises the COR/OO to order services for the next day, and commodity work completes prior to next day’s start time, the contractor shall be liable for all personnel, and any union guaranteed time at its expense.

4.9 Cancellation of Services. Cancellation of services shall include daily cut-off time(s) for canceling all S&RTS. Procedures for canceling services shall be provided within (2) Two calendar days of contract award date. Unless otherwise stated elsewhere, the USG will and the Contractor shall agree, ordered services shall be canceled no later than (NLT) 1700hrs the same day as ordered for 0800hrs start time the next day, or at 0700hrs the next day for 1300hrs start times the same day. Example: Services ordered on Monday at 1400hrs for Tuesday morning 0800hrs start time, may be canceled at or before 1700hrs the same day as ordered.

4.9.1 The COR/OO will notify the Contractor verbally or by telephone to cancel services followed by written email/memo or other communications, stating that services are/will to be canceled on or before which we may cancel ordered services and/or equipment free of charge and without liability of any kind. The USG will not compensate the Contractor for service ordered and then canceled on or before established cut-off times.

4.9.2 Should Contractor personnel arrive at the work site at the scheduled order time, and services were cancelled, due to circumstances beyond the control of the USG, the Contractor shall receive minimum time guarantee for all classes of labor verified by the COR/OO. Contractor personnel arriving at the work site who were not timely notified by the Contractor those services were cancelled; the Contractor shall be responsible for compensation of those personnel at its own expense and is not entitled to reimbursement.

4.10 Verbal request. During any operation, the COR may also identify additional labor, services, or CFE/MHE needed verbally to the Contractor when necessitated by the mission/operation and will issue a signed written request. The Contractor shall present those written request to the OO within 24 hours of completing the mission/operation for reconciliation.

4.11 Reconciliation and Validation. The goal of the 838th is to reconcile, complete, and process the Contractors invoice and close all TO's within 21 calendar days of the completion of each task order. The COR/OO shall determine, and the Contractor shall agree to reconcile and settle all task order(s) within a set timeline and provide an invoice to the COR for payment. The Contractors failure to reconcile TO's within the below perimeters will result, with the USG finalizing TO's based on its documented evidence of the Contractors performance, whereas the Contractor shall agree/accept the USG's "final TO" for invoicing.

4.11.1 The COR, OO, and the Contractor shall reconcile all S&RTS within seven (7) calendar days of completing the work, reviewing all supporting documentation (logbook, tally sheets, and time sheets, and written request) for (vessel or DocWeek) ordered services. The COR will provide the contractor the ARTRANS Form MT 288 capturing all commodity, detention, standby, Extra Labor (XL), for each class of labor and EQR time used in conjunction within commodity work, the Contractor and COR shall agree by signing (digital or wet signature) the MT288.

4.11.2 Once reconciled, the OO will within seven (7) calendar days or when practicable after large operations will finalize each TO accounting for actual Contractor performance per MT 288. The OO will submit a "final task order" to ARTRANS G8 for validation, once validated and dated the OO will forward the validated TO, to the Contractor, whereas the Contractor shall then invoice the USG. The Contractor shall submit their invoice for payment to the COR for validations/certification, if information on the invoice does not match the TO or MT288, the COR will return the invoice back to the Contractor to correct or will validate & certify the Contractors invoice within (7) calendar days and to G8 for payment processing.

**** NOTE**** Any invoice submitted, dated prior to the "G8 validation date" will be returned, G8 will not process invoices for payment dated prior to its validation date and will return invoice to the COR whereas the Contractor will have to re-issue a corrected invoice for processing/payment. The USG shall not be liable for accrued interest payments to the Contractor.

4.12 Out-of-Pocket (OOP) Expenses. OOP expenses involve the reimbursement of actual invoiced cost made by the Contractor to a third-party vendor, supplier, or subcontractor for additional supplies, materials, facility support services, or other services sourced on behalf of the USG.

4.12.1 OOP expenses do not include expenses inherent to performing stevedoring and related terminal services. OOP expenses are for the purpose of purchasing supplies or non-durable goods. The Contractor shall obtain written approval from the COR for each item requested. All such materials or supplies shall become Government property, and the Contractor shall recover and reuse serviceable material and supplies from each operation and used in subsequent other operations when possible. The Contractor will not be compensated for re-use of recovered materials.

4.12.2 The Contractor shall gain prior written approval before the purchase of materials from the COR for OOP expenses exceeding the threshold of \$3,500 per individual item, additionally administrative fees (exp; delivery charges or taxes) are allowable OOP expenses and compensation shall be set forth in the SOR. The Government may source materials to support mission readiness, at its discretion and direct the Contractor to procure the materials. "Government owned" is defined as either material purchased by the Government for Contractor use in support of this contract or materials purchased by the Contractor and approved as an OOP expense by the COR for Government use and for which Contractor has valid vendor receipts.

4.13 Vendor Invoice or Receipt. OOP expenses do not include expenses inherent to performing stevedoring and related terminal services. OOP expenses are for the purpose of purchasing supplies or non-durable goods. The Contractor shall obtain written approval from the COR/OO for each item requested. All such materials or supplies shall become Government property, and the Contractor shall recover and reuse serviceable material and supplies from each operation and used in subsequent other operations when possible. The Contractor will not be compensated for re-use of recovered materials.

4.13.1 Items purchased/rented shall be identified on the TO template (MISC. Tab) form by the OO and certified as necessary by the COR. The Contractor's invoice for miscellaneous expenses shall detail each service or supply, the rate per unit, number of units and total extended price, accompanied by the vendor(s) receipt/invoice as substantiating documentation. The USG will not reimburse for any miscellaneous OOP expenses without all substantiating documentation (vendor itemized receipt/invoice) attached. For miscellaneous supplies and durable goods not listed under a specific schedule of rates (SOR), compensation shall be at reimbursement OOP expense.

4.14 Three (3) Written Estimates. The Contractor shall provide to the COR three (3) written estimates for all additional services, materials, supplies, or rental equipment prior to the purchase or its rental for COR approval. OOP expenses do not include expenses inherent to performing S&RTS commodity work. OOP expenses are for the purpose of purchasing as needed new supplies or non-durable goods on behalf of the USG.

4.14.1 The Contractor shall obtain written approval from COR prior to the purchase of all goods & services considered. Whereas the COR shall seek CO approval for all OOP expenses exceeding \$3500.00.

4.14.2 The Contractor shall provide 3PL/subcontracted services that include, but not limited, to agricultural vehicle or container pressure-washing services, pest and vegetation control, security services, vehicle or aviation fuel service, and specialized rental equipment. The USG will reimburse the Contractor for actual cost (vendor invoice or receipts required), and for any transportation, surcharges, expenses associated with furnishing ordered materials, equipment, supplies, and/or subcontracted services.

4.14.3 The USG may source specialized materials or subcontracted vendors to support mission readiness at its discretion, for the Contractor to procure those materials or services on its behalf.

4.15 Military Training. The USG reserves the right to support or conduct military port operations training at its discretion, either scheduled or unscheduled.

4.15.1 The USG will inform the Contractor no later than (NLT) 48 hours prior to any scheduled training event or as soon as planning develops.

4.15.2 During these training events, the USG may utilize U.S. Military or USG civilian personnel for loading and discharging the entire or parts of a vessel and/or conduct routine terminal or other port operations or any part of those operations thereof.

4.15.3 The Contractor shall not receive any compensation for cargo handling conducted by the Military during these training events, unless commodity, extra labor, equipment rental, or other facility support services were ordered by the COR/OO, whereby the USG will then compensate the Contractor per established rates in the SOR.

4.15.4 In addition to the above, the USG reserves the right to provide Military drivers to operate/drive (load or discharge to/from the vessel, truck or rail) or other cargo at any time when determined it is the best interest of the USG to do so. During vessel, truck or rail load or discharge, where military drivers or aircraft support staff were provided, the USG will only compensate the Contractor for services provided i.e., lashing/unlashing for those vehicles/aircraft operated/driven by the Military or US civilian. All other Commodity rates shall apply for all other cargo fully handled by the Contractor.

4.16 **Commodity Rates.** The Contractor shall provide an all-encompassing commodity rate for each commodity type listed below, for each commodity schedules listed in the SOR (see appendix B) e.g., all commodity rates applicable to this contract are inclusive of all labor, equipment, and port handling tariff costs related to the handling and movement of cargo, to include planning activities, and shall include all of the below but not limited to the following: (see requirements throughout the PWS)

- Management & Supervision, Safety Program Representative (SPR), Environmental Compliance Officer
- All planning activities
- General labor, Skilled labor, Skilled drivers, and Stevedore & Longshoremen
- Contractor Furnished Equipment (CFE) i.e., Material Handling equipment (MHE) and its driver/operator, Gear, mechanics tools (manual & air), shop equipment, rigging, spreader bars, slings, wire rope, hooks, shackles, straps, and Military style slave cables & tow bars (assorted sizes)
- Ground transportation: i.e., trucks, van, buses, contact maintenance vehicle
- Materials and miscellaneous supplies (PPE, dunnage, POL, fuel, and hazardous collection and/or cleanup supplies)
- Cargo accountability, cargo inspections, lashing & unlashing cargo and lashing inspections for rail and vessel movement
- Checking & Tallying (i.e., runners, scanning, documentation, foot printing, and timekeeping)
- Cargo management (i.e., towing, contact maintenance, safety/environmental)
- Housekeeping (e.g., vessel, yards, lots, warehouse, and facilities)
- Staging yards and cargo management (i.e., cargo consolidation, frustrated)
- Port tariff fees/charges associated to USG cargo handling
- Safety Devices

4.16.1 The following is a list by commodity number and category and examples of vehicles, containers, breakbulk, or aircraft they represent (not an all-inclusive list).

- (1) **Commodity 35 – Aircraft.** Rotary or fixed wing.
- (2) **Commodity 40 – Breakbulk.** Non-rolling stock cargo that is not containerized. Field maintenance units M7-FRS or multiple stacked flat racks, skid mounted generators, or loaded 463l pallets, etc.
- (3) **Commodity 44 – Containers.** Nonexplosive - less than twenty foot in length (i.e., ISUs, Bicons, Tricons, Quadcons).
- (4) **Commodity 45 – Containers.** Nonexplosive - 20' and 40' lengths or multiple knuckled containers configured into twenty or forty foot units.
- (5) **Commodity 60, 61, and 67.** Vehicles and trailers - classified by weight class.

4.16.2 Commodity Pricing. The USG shall compensate the contractor for commodities handled. The Unit of Measure (UOM) shall be each (EA) for single pieces (e.g., containers, vehicles, orphaned trailers, and/or aircraft). Commodity category, plus the labor agreement charge/fee (short-ton (tonnage) and per container fee) shall be included in each payable commodity, when applicable. Prime vehicle/trailer combinations will be considered one (1) piece. For breakbulk cargo the UOM used is “Measurement Ton (MTON)”. For payment purposes, breakbulk secondary loaded, nested, or stacked on cargo beds or trailers will be considered part of prime vehicle/trailer and counted as part of the prime vehicle or trailer. Stacked/bundled flat racks shall be counted as one (1) piece.

4.16.3 Measurement Ton Calculations. The USG will calculate MTONs using cargo dimensional data; calculate volume in inches (length x width x height) divide by 1728 (volume of 1 square foot) then divide by forty (40) cubic feet. Example: Dimensional measurements of (L) 240in (W) 96in (H) 96in divided by 1728 then divided by 40 will equal 32 MTON’s.

4.16.4 In addition, commodity rates, are intended as one time movement of cargo, (e.g., from its staged location (point of rest), moved to the final point of stow onboard the vessel, “or” from the stowed location onboard the vessel to its designated final point of rest per the USG staging plan) or from point of rest to/from commercial truck. Other than for checking and tallying cargo, cargo consolidation, stopping the flow of cargo from “staging to vessel/truck/rail” or from vessel/truck/rail to staging is for the convenience of the Contractor and at contractor expense, the USG will not pay additional cost associated to double handling the USG’s cargo unless approved by the COR in advance.

4.17 Pricing. Pricing shall be by the “individual MSL labeled piece, i.e., EACH (EA)” See also SOR for further description and definitions. Nested cargo with MSLs will be considered part of the parent cargo and be priced as a single commodity.

4.17.1 Each commodity further divided by handling method, shall infer loading or discharge Lift-On/Lift-Off (LO/LO), and (a, b, d, and e) as follows. (Please refer to appendix B of the Glossary or the SOR for further definition).

4.17.2 The USG will not interfere with any method the Contractor chooses to dray, move or lift any USG cargo; however, the Contractor shall be responsible to use proper methods of draying, lifting, or towing vehicles/trailers and general cargo as stated elsewhere in this PWS, military standards per Army Regulation (AR) or Modal Instructions (MI). The USGs preferred and most efficient method of loading or discharging vehicles is by driving them under their own power. The USG will not compensate the Contractor for loading/discharging cargo for other than by the intended commodity method (e.g. lifting operable vehicles in lieu of driving them or separating a trailer from its prime mover) unless approved by the COR. The Contractor shall be fully responsible and liable for all damaged caused by its personnel for negligence due to improper handling methods.

4.18 Exceptions to Commodity Rates. In Circumstances where certain cargos do not fall within commodity descriptions or in established commodity rates, the USG will make exceptions to compensating the contractor for cargo shipments received and handled for which no commodity rate(s) were established. The USG will compensate the Contractor handling that cargo per Extra Labor (XL) and/or Equipment Rental Rates (EQR) rates (if needed), per (Schedule 2 & 4) of the SOR. If the COR determines it is necessary to establish additional commodity rates, for recurring cargo receipt, the COR will advise the CO for a modification to the SOR adding or adjusting additional compensation lines for the remaining period of performance of this contract.

4.18.1 In addition, commodity rates, are intended as onetime payment for movement of cargo, (e.g., from its staged location (point of rest), moved to the final point of stow onboard the vessel, “or” from the stowed location onboard the vessel to its designated final point of rest per the USG’s staging plan) or from point of rest (staging) to/from land-based conveyances (CULT/CLH or rail). Other than for tallying & checking cargo, cargo consolidation, stopping the flow of cargo from “staging to vessel/truck/rail” or from vessel/truck/rail to staging is for the convenience of the Contractor and at contractor expense, the USG will not pay additional cost associated to double handling the USG’s cargo unless requested and approved by the COR/OO in advance.

4.18.2 TABLE 1— Cargo Handling (Services) Operations

****NOTE:** *The USG refers to the following cargo handling table (as definitions); the table does not define each as separate billable item(s). Example: Schedule 1A1 - Loading Vessel. Loading cargo on a vessel will inherently include moving cargo from its staged place of rest (regardless of method) aboard the vessel. Once aboard the vessel the cargo is stowed in its designated stow location; this includes but is not limited to driving, towing, or draying the cargo aboard the vessel, lashing/securing/tiedown, lashing inspections, documentation, foot printing, checking & tally, debris removal, housekeeping, and reconciling the operation with the COR.*

Operation	Definition
Loading	The act of moving cargo from its staged place of rest to a conveyance (vessel, truck, or railcar).
Discharge	The act of unloading cargo from a conveyance (vessel, truck, or railcar) to a designated final place of rest.
Receipt or reception only	The act of documenting cargo arriving into the port, by military convoy.
Disposition	The act of documenting the onward movement of cargo from the port or terminal to its final destination. (port clearance)
Lashing and Un-lashing (only)	The act of providing only lashing or unlashings (tie-down) of cargo aboard a vessel.

Stuffing	The act of loading/moving cargo from its place of rest inside a container, or onto flat rack(s).
Unstuffing	The act of unloading cargo from a container or flat rack to its final place of rest.
Stripping	The act of discharging cargo from trailers, flatbeds, MAFI's, to its final place of rest.
Intra-Port Transfer	The act of moving cargo from its place of rest to another place of rest (not within same staging areas) within the port or between local ports.

4.19 **Guaranteed Time, Stand/by, and Detention**

4.19.1 **Documented Evidence.** The Contractor shall provide to the COR all approved documentation (time sheets, hatch logs or logbook) as evidence justifying detention time, , guaranteed time, or overtime, at the end of each shift wherein the work is compared to the USG Timekeeper's logbook/records for completion of the ARTRANS Form 288 for approval of compensation. The Contractor shall obtain COR/OO written pre-approval to work in all conditions specified under Detention time, Guaranteed time, Overtime, or Extra labor. Failure to follow the above shall preclude compensation except with CO approval. the USG will not pay/compensate the Contractor where services are ordered, and service/work is not being performed.

4.19.2 **Guaranteed time.** Guaranteed time, defined as minimum work guarantee to the Ports of Mannheim and Regensburg the USG will pay guaranteed time to the Contractor when commodity services are ordered, but commodity work is no longer available. Guaranteed time shall be paid in addition to the commodity work when commodity work takes less than minimum time guarantees, whereas the Contractor will be compensated at published rates per (Schedule 3C) of the SOR. (Example: Guaranteed time per is (8) eight hours (first/second shifts) and (5) Five ours for third shifts. If commodity work is ordered for first shift, whereas commodity operation lasts only two hours. The USG will pay the difference in XL rates of (6) Six hours guaranteed time using hourly base rate (Schedule 3C) per each union class of labor at the work site by the COR. The USG will not pay the guaranteed time to the Contractor for management or supervision.

4.19.3 The USG will not pay guaranteed time to the Contractor where written published record does not exist. In no case will the USG pay guaranteed time when services are ordered but the Contractor is unable to provide sufficient personnel to conduct the operation or when contracted labor refuses to perform the services for which ordered, in cases where the Contractor mis-judges commodity work completion and labor orders are made and work completes prior to next day's start time, the contractor shall be liable for all guaranteed time at its expense.

4.19.4 The USG shall not pay guaranteed time separately to any class of labor working commodity in conjunction with other classes of labor until completion of commodity activity; or any part of a gang not required on a commodity activity. For example, unloading operation is inclusive of unlashings and unloading cargo to its designated place of rest or stow under one commodity rate. Lashers who finish unlashings are still on commodity time (i.e., not guaranteed or detention time) until drivers complete unloading and staging cargo in its final point of rest or stow and all checking & tallying and inspections are completed. During a load operation, after drivers complete the load, they remain on commodity rates until lashers have completed all lashing, and all checking & tallying and inspections are completed. While any portion of labor to include checkers working commodity, all are listed as commodity.

4.20 **Shift Differentials.** When work is performed in a shift other than the normal/regular daily shift the contractor shall be compensated in accordance with the applicable shift differential rates set forth in the SOR for each man in gangs, including equipment operators, drivers and foremen. When work is performed on an extra labor basis, shift differentials shall be compensated at the shift differential rates in Schedule 3B of the SOR.

4.21 **Detention.** Detention is defined as time lost due to work stoppage or interruption of work during commodity operation for causes beyond the control of the Contractor. Causes include but are not limited to changes in vessel, truck schedule and/or operational plan (i.e., change to staging or stow plans). Should the USG change planned work, halt work, or alter other plans during an operation, the COR will notify the Contractor. The Contractor shall advise the COR if able to continue working where work is available, and the Contractor may be directed by the COR to shift their labor to another location to reduce detention time. Detention rates shall be compensated at the rates in Schedule 3A of the SOR.

4.21.1 Guaranteed time, and Detention are subject to the following:

- The COR or designated representative will negate the cause and/or direct the Contractor to stand-by or detention.
- Guaranteed time, computed to the nearest 5-minute multiple.
- Detention time paid in lieu of Extra Labor (XL) base pay rates.
- When detention time occurs during a commodity operation, the Contractor shall absorb the first fifteen (15) minutes or less. The Contractor's time will be captured by the COR on the ARTRANS Form 288 as Detention (D). The USG will pay the Contractor at the established detention base pay rates in Schedule 3A of the SOR for all affected labor, including checkers and equipment operators for each detention period more than fifteen (15) minutes including the first fifteen-minute period thereof and each minute thereafter. Unless the Contractor notifies the COR and gains written approval the USG will not pay detention time for CFE.
- During a commodity operation, the USG shall not pay detention separately to any class of labor working commodity in conjunction with other classes of labor working the same commodity operation or any part of a gang not required on a commodity activity. For example, unloading operation is inclusive of unlashings and unloading cargo to its designated place of rest or stow under one commodity rate. Lashers who finish unlashings are still on commodity time (i.e., not guaranteed or detention time) until drivers complete unloading and staging cargo in its final point of rest or stow and all tally and checking and inspections are completed. During a load operation, after drivers complete the load, they remain on commodity rates until lashers have completed all lashing and all tally and checking, and inspections are completed. While any portion of labor, to include checkers, are working commodity, all are listed as commodity.

- When the Contractor is working as/on Extra Labor (XL) operations, the USG shall pay the Contractor on detention base rates for detention time (detention rules apply). If part of the labor is required to perform XL work, the USG shall pay the balance of labor standing by at detention base rates. If certain classes of labor are required to standby because another class of labor is performing an extra labor operation, then the USG shall pay such certain classes of labor at detention base rates.
- Any lost time due to the Contractor fault will be at the Contractor expense.

4.21.2 The Contractor shall provide to the COR approved documentation (time sheets or logbook) justifying all ordered labors time, detention time, guaranteed time, or overtime, at the end of each shift wherein the work is compared to the USG Timekeeper's logbook/records for completion of the ARTRANS Form 288 for approval of compensation. Failure on the part of the Contractor to do so at the time shall preclude compensation for the above situations except with COR approval.

4.22 **Detention during Extra Labor (XL).** Operations, the USG shall pay the Contractor on detention base rates for detention time. If part of the labor is required to perform XL work, the USG shall pay the balance of labor standing by at detention base rates. If certain classes of labor are required to standby because another class of labor is performing an extra labor operation, then the USG shall pay such certain classes of labor at detention base rates.

4.23 **Extra Labor (XL) Man-hour Rates.** As ordered by the OO and as directed by the COR, the Contractor shall provide, labor, and equipment for miscellaneous or terminal services within the scope and intent of the contract. Unless services are occasioned by fault or negligence of the Contractor, the Contractor shall be compensated at the XL and EQR rates established in schedule 2 and 4 of the SOR. The USG will not compensate the Contractor for detention that occurs during ordered extra labor operations.

4.24 **Miscellaneous Services.** Miscellaneous services include, but are not limited to, the following:

- Carpentry work in excess of normal lashing, blocking & bracing
- Welding & burning
- Re-handling, removing, and shifting of cargo (Military or commercial)
- Building or dismantling of sheathing and nailed floors
- Handling of ships' stores & materials
- Assistance to USG personnel for terminal services, exercise, and contingency operation.
- Other miscellaneous vessel and terminal operations

4.25 **Overtime.** Overtime is defined as the hours worked past a workday shift, regardless of shift, and defined by local labor agreements. If applicable, current labor laws shall apply. Any hours worked past a regular workday shift shall be compensated with overtime rates (see 4.11 below) as established in Schedule 3B of the SOR for all classes of labor.

4.26 **Ordered Overtime.** The contractor shall, when directed by the COR, supply labor for requested overtime work (including weekends and holidays). Overtime pay shall be rounded to the nearest 5-minute increment. The Contractor shall be compensated in addition to commodity rates per Schedule 2 when overtime work is ordered and/or worked.

4.26.1 The Contractor shall obtain COR written pre-approval to work in all conditions specified under detention, extra labor, or overtime.

4.27 Overtime Pay. Overtime pay rates are defined as the hourly overtime pay and apply regardless of weekday. Weekends and holidays shall be paid overtime rates when worked. Overtime rates as established in Schedule 3B of the SOR for all classes of labor per local laws or regulation governing wage compensation.

4.28 Working Commodity. In addition to commodity rates when overtime work is requested/ordered and/or worked the USG shall only pay overtime rates per (Schedule 3B) to eligible laborers who are present from 1st shift and requested to continue working beyond normal workday/shift, subject to verification by the COR. The Contractor shall be responsible at their expense for pay differentials for all workers, normally released at the end of the workday/shift but choose to work additional work shifts at their request, whereas the USG shall consider those workers to be working a new shift and therefore not eligible for differential pay unless worked past 2nd/3rd normal work shift hours that would then qualify them for differential overtime pay for each worker (excluding contract managers or supervisors) and for those hours only worked past normal those workday/shift(s).

4.29 Start Time. The Contractor shall be flexible to the Government for work start times. The Government shall discuss vessel or terminal work at each planning meeting, where an established workday start time shall be established. Start times that start at later than regular working hours shall include guaranteed time (if applicable) but shall not include overtime until full normal workday hours are met.

4.29.1 The Contractor shall obtain COR written pre-approval to work in all conditions specified under guaranteed time, detention, extra labor, or overtime.

4.30 Equipment Rental Rates (EQR). Equipment rental, defined as Contractor Furnished Equipment (CFE, e.g., MHE), EQR applies to equipment owned and operated by the Contractor, and used while handling USG cargo for XL ordered services. For all commodity operations the Contractor's CFE, its driver/operator, gear, rigging, POL's, materials, and supplies are inclusive of all commodity activity work (i.e., vessel, commercial truck, and rail (loading or discharging), cargo transfers, towing, stuffing/unstuffing, etc.). All CFE used during the course of this contract used for the above, shall also include requirements mentioned in section 4.5 of the PWS. The Contractor shall provide an hourly and/or daily rate for CFE listed in (Schedule 4) of the SOR, daily rates shall imply 24-hour period.

4.30.1 For all commodity operations the Contractor's CFE/MHE, its driver/operators, gear, rigging, POL's, materials, and supplies shall be inclusive of all commodity activity work (i.e., (loading or discharging) vessel, CULT assets, CLH and rail, cargo transfers, towing, stuffing/unstuffing, maintenance vehicles, etc.)). All CFE/MHE used during the course of this contract used for the above, shall also include requirements mentioned in section 4.5.1 of the PWS.

4.30.2 CFE not listed in the SOR shall not be eligible for compensation without prior written approval by the COR for its use. However, any EQR approved by the COR shall be subject to the same conditions as above and rental cost reimbursed at OOP expense.

4.31 EQR Reimbursement. The COR may approve EQR reimbursement cost of CFE used during commodity ordered services under the following condition but not limited to the following circumstances:

- Additional handling of cargo after cargo has been completely staged, stowed, or loaded and the USG requires cargo disposition to change (i.e., stow changes, or stow plan changes)

- Preparation of cargo (i.e., reducing cargo footprint) prior to onward movement
- De-nesting, unstacking cargo once onboard the vessel
- Loading carrier owned ships gear (i.e., MAFI trailers) during vessel upload
- Unloading, moving, adjusting commercial cargo onboard the vessel

4.31.1 CFE/MHE used for Commodity work in conjunction with XL/EQR on the same day/time, the USG will only compensate the use CFE/MHE only for the actual time CFE/MHE (Driver/operator included) was used in an XL/EQR situation and shall be verified in writing by the COR and the Contractor at the time XL/EQR is rendered.

4.32 **Mobile Crane.** Mobile crane equipment rental rates (when ordered) shall be inclusive of the crane operator(s), fuel, lubricants, slings, spreader bars, rigging, and accessories, and any mobilization and demobilization costs, all cranes shall be load tested prior to use, all equipment used will be subject to written approval by the COR. Crane rental/usage shall be considered cost reimbursement (OOP expense).

4.32.1 Any EQR rented as “Daily” shall imply 24 hours of use.

4.33 **Equipment Used in an Extra Labor Situation.** The USG shall reimburse the Contractor for its CFE use based on equipment schedule 4 of the SOR. Equipment used for both Commodity work and Extra Labor on the same day/time, the USG will only compensate the Contractor for the time equipment was in actual use (operator included) in an Extra labor situation and verified by the both the COR and the Contractor.

4.34 **Cargo & Staging Space Management.** The Contractor shall as part of all commodity rates, will manage and move cargo forward, as cargo is called, for loading all conveyances. The Contractor shall inform the COR/OO of decreased staging/space and shall not charge the USG for staging/space not being used. The USG will not compensate/pay for staging/space where the Contractor failed to manage cargo and failed to inform the COR/OO of those changes.

4.35 **Contract Labor Reporting.** The Contractor shall provide, as requested by the COR, a daily time keeping logbook for verification of labor and services provided for each shift per day’s operations, for the purpose of reconciliation. Breakout will include the description of service, total quantities of labor by class, hours worked to the nearest 5-minute interval, and significant events of the day.

4.36 **Timekeeping.** The Contractor shall maintain timesheets, with 100% accuracy, for all contractual services furnished. The timesheet shall include the following information:

- Date & time of operation
- Timekeeping or a daily time keeping logbook, hatch logs, Time sheets and tally sheets
- Work was performed on daily shift or continuous shift
- Daily port work accomplishment plan
- Number of laborers, by class type of labor used, and hours worked
- Type, number, and hours equipment is utilized
- Verbal reports, or other requested data for verification of all services and contracted labor was provided for each shift/day’s operations for the purpose of reconciling all ordered services.
- Times and reasons for any work stoppages (detention, etc.)

4.37 **Timesheets.** The Contractor shall verify with the COR all timesheets. Compensation for services defined in this paragraph are included in all commodity rates established in the SOR.

4.38 Time Management. In addition to all other requirements stated elsewhere, the Contractor shall provide the USG with:

4.39 Cost Data. The Contractor shall segregate and accumulate cost data relating to this contract for each type of operation (examples: loading and discharging vessels, extra labor, detention, and CFE usage). The Contractor shall report this data monthly to the COR. Compensation for services defined in this paragraph are included in all commodity rates established in the SOR.

4.40 Daily Port Work Accomplishment Plan. The Contractor shall provide to the COR/OO their daily port accomplishment plan, this report will cover the agreed upon work for the day, and accomplishments to include completion times, vessel discharge/load, port reception/clearance, terminal services and shall include by name, class of labor, and number of labor gangs, vessel(s), piers, etc., and CFE/MHE requirements, by shift, or operation for the next twenty-four (24) hour period reports shall also include “man sheets” for clerks and headers. The Contractor shall provide this information at daily operations meetings.

4.41 Reports (Verbal or Non-Verbal). The Contractor shall provide to the COR, written reports of contractual issues that may result into actual or anticipated problems. These reports should be provided when problems are identified whereby the COR will bring the issues to the CO for resolution. The COR will maintain all written reports reflecting positive, negative, or unresolved occurrences. The COR will document all conversations (verbal or non-verbal) with the Contractor resulting from any correspondence between the USG and the Contractor. The Contractor shall maintain all written reports or records that document agreements made between the USG and the Contractor and shall make available to the USG upon request.

4.42 Monthly COR & Contractor Meetings. The Contractor shall meet monthly with the COR/OO to discuss verbal reports or contractual issues (actual or anticipated), invoicing, unreconciled pay, and other written reports reflecting unresolved conditions or negative reports identified at other monthly meetings. All meetings shall have written for record (meeting minutes) and shall be required for any commitments made between the USG and the Contractor.

4.43 Request for Information or Documentation. The Contractor shall maintain communications and/or respond to USG inquiries regarding the status of work, cargo, or labor within four (4) hours or less when notified by the COR/OO. The Contractor shall immediately notify the COR of their inability to perform any task or function IAW this PWS. Compensation for services defined in this paragraph is included in all commodity rates established in the SOR.

4.44 Sample Documentation. The Contractor shall provide within (2) Two Calendar days after contract award date, the Contractor shall submit to the COR samples of all documentation used for reporting, cargo accountability purposes for approval.

4.45 Transition of S&RTS Contract Services. The Contractor shall within seven (7) calendar days of expiration/award of the S&RTS contract shall begin a joint inventory with the COR This joint inventory shall be completed and all issues resolved within seven (7) days of commencement unless a longer period is approved by the CO. Transfer of all property shall be completed within seven (7) days after completion of the joint inventory.

4.46 Schedules and Task Orders. The Contractor shall ensure work schedules and open task orders are completed or work accomplished until the contract has expired.

4.47 Order of Precedence. The Contractor shall accomplish all tasks IAW referenced regulations identified in the PWS. When a conflict exists between the PWS and regulations set forth therein, the PWS will prevail unless the regulation mandates priority. In the event there is a conflict between or among two or more such regulations, those coded mandatory shall prevail over those coded advisory. Between or among those similarly coded, those issued by a higher authority shall prevail over those issued by a lower authority and between or among those issued at the same level of authority, those with a later date of issue shall prevail over those with earlier dates of issue.

4.48 Performance Requirements – Quality Assurance (QA).

4.49 Contractor Performance Requirements. This is a performance-based contract. The Contractor's performance shall be measured against the performance objectives listed in Contractor Performance Requirements Summary (PRS).

4.50 Definition of Performance Requirements. Performance Requirements are described as performance objectives, measures, and standards in the following manner:

- Performance Objective – A statement of the outcome or results
- Performance Measures – The critical characteristics of the objective that will be monitored by the USG
- Performance Standards – The targeted level or range of levels of performance for each performance measure, relating to the Acceptable Quality Level (AQL) for the objective

4.51 Use of Performance Measures and Standards. The Contractor shall ensure every performance objective is provided IAW the PWS; however, every performance objective does not have a related performance measure or performance standard. For those performance objectives which do not specify a measure or standard, the measures and standards are IAW standard commercial practices.

4.52 Quality Assurance. The USG will inspect the Contractor's performance IAW the PWS during the term of the contract. The Contractor shall not limit or hinder the USG's access to places (to include services performed by Subcontractors) where services are being performed. The USG will randomly provide inspections with or without notice to the Contractor.

4.53 USG Observations. USG personnel, other than the CO, COR, ACOR or OO, will observe the Contractor's operations; however, they will not interfere with Contractor performance.

4.54 Contracting Officer's Representative. The Contracting Officer Representative is the authorized USG representative(s) who will perform assessments of the Contractor's performance.

4.55 The COR(s) will inform the Contractor verbally when violations or discrepancies occur and may request corrective action. The COR(s) will make a notation of the discrepancy on their surveillance checklist with the date and time the discrepancy was noted and request the Contractor (or authorized representative) to initial the discrepancy. The USG may issue a Contract Discrepancy Report (CDR) to the Contractor if deemed appropriate.

4.55.1 If the Contractor has contract concerns due to potential scope issues, prices, terms or conditions of the contract, the Contractor shall contact the CO and not discuss with the COR(s).

4.55.2 The CO or the COR will inspect or evaluate services performed by the Contractor during the period of this contract.

4.56 Quality Control Inspection Plan (QCIP). The Contractor shall provide a QCIP to the CO and COR within 10 days of contract award. It will emphasize quality control over all contract requirements. The QCIP will contain a Quality Control Inspection Checklist (QCIC) which, at a minimum, will contain all elements of the PRS.

4.56.1 The QCIP shall include the following:

- A quality control inspection system covering general and specific tasks included in the contract scope of work. It should specify tasks or areas to be inspected on both a scheduled or unscheduled basis, and the manner in which inspections are to be conducted.
- The names of firms or individuals tasked to perform inspections and the extent of their authority. This may be in the form of an organization chart or other form approved by the COR.
- A method of identifying deficiencies in the quality of services performed before the level of performance becomes unacceptable.
- A method of documenting and enforcing quality control operations of prime or Subcontractor work, including inspection and testing.

4.57 Quality Control Inspection Checklists (QCIC). The Contractor shall submit the QCIC to the COR upon completion of every vessel operations mission. Compensation for services defined in this paragraph are included in all commodity rates established the SOR.

4.58 Quality Control Files (QCF). The Contractor shall maintain a file of all Contractor inspections or tests, to include any corrective actions taken. The USG may review the Contractor's QCF at the CO's discretion during the contract term, to include any extensions of contract term. The Contractor's QCF is USG property and shall be provided to the USG upon completion or termination of the contract.

4.59 Performance Requirements. The USG will evaluate the Contractor's performance under the contract using the methods of surveillance specified in the PRS. The USG will record all surveillance observations. When an observation indicates unsatisfactory performance, the COR will request the Contractor to document the observation and provide a response on how they intend to improve the unsatisfactory performance.

4.60 Performance Evaluation Meetings. The Contractor shall meet weekly with the COR and/or the Contracting Officer during the first month of the contract. Meetings will be held as often as necessary thereafter as determined by the COR.

4.61 Contractor Performance Assessment Reporting System (CPARS). The Contractor's performance will be evaluated to assesses a Contractor's performance and provide a record, both positive and negative, on a given Contractor during a specific period of time, when determined by the Contracting Officer. Each assessment is based on performance requirements IAW the PWS and the Quality Assurance Surveillance Plan (QASP). The report will be entered into the USG automated information system, Contractor Performance Assessment Reporting System (CPARS) IAW FAR 42.15. The Contractor shall be required to provide name & email address of an individual who represents their company. This person will receive access to CPARS to view and respond to any CPARS ratings provided by the USG.

4.62 Reports and Documentation (Summary)

Operational Reports	Daily	Before close of business	One per day
Service Task Order (TO) Form	Each cargo operation	NLT 8 hours after completion of shift	One when required
Checking & Tallying Report (manual)	Each cargo operation	NLT 2 hours after completion of shift	Two per Transportation Control Number (TCN)
Timekeeping Report	Each cargo operation	NLT 2 hours after completion of operation, shift, or sooner	Per operation
Warehouse Reports	When applicable	Before close of business each day warehouse space is utilized	When required
Cargo Damage Report	When applicable	NLT 8 hours after completion of shift	One per TCN
Cargo Accountability Documents	When applicable	NLT 24 hours after completion of shift	One when required

4.63 Preparation. The Contractor shall ensure that all documents submitted IAW the PWS and requested by the COR, shall be typed in English. The information recorded shall be accurate and verified.

4.64 Documentation Distribution. The Contractor shall make distribution with the correct number of copies prepared and the blank forms delivered to the correct location(s). All copies shall be legible (i.e., dark, easily read print, not crumpled, not wet). Distribution shall be IAW guidance provided by COR.

4.65 Schedules and Task Orders. The Contractor shall ensure work schedules and open task orders are completed or work accomplished before the contract has expired.

4.66 Order of Precedence. The Contractor shall accomplish all tasks IAW referenced regulations identified in the PWS. When a conflict exists between the PWS and regulations set forth therein, the PWS will prevail unless the regulation mandates priority. In the event there is a conflict between or among two or more such regulations, those coded mandatory shall prevail over those coded advisory. Between or among those similarly coded, those issued by a higher authority shall prevail over those issued by a lower authority and between or among those issued at the same level of authority, those with a later date of issue shall prevail over those with earlier dates of issue.

4.67 Cargo Accountability. Within ten (10) days after contract start date, the Contractor shall submit to the COR a sample of all documentation used for cargo accountability purposes.

4.68 Failure to Perform. If the Contractor fails to perform reporting and documentation services which results in a loss to the USG, the excess handling of additional transportation costs shall be at the Contractor's expense. The amount will be determined by the Contracting Officer.

4.69 Other Contracts. The Contractor shall fully cooperate with other Contractors and USG employees. The Contractor shall adjust the work schedule as requested by the COR. The Contractor shall not interfere with the performance of any other Contractor or USG employees.

4.69.1 The Contractor may be required to organize their labor into working shifts as requested by the COR.

4.69.2 If the Contractor, for any reason, is unable to perform the services required, he shall immediately notify the COR.

4.70 Continued Performance During Contingencies or States of Emergency. The USG has identified all requirements and services listed in this PWS as being essential to the USGs mission and operational readiness. When determined essential, the Contractor shall be required to perform the PWS tasks during US contingencies or during a state of emergency, subject to the requirements and provisions listed below.

4.70.1 The Contractor shall perform all requirements IAW the PWS, notwithstanding the existence of any contingencies (whether declared or undeclared), state of emergency, commencement of hostilities, internal strife, rioting, civil disturbance, labor disputes, or activities of any other type which would endanger the welfare and security of United States. At the discretion of the USG, and within the scope of this contract, the Contractor shall participate in any requirement relating to US preparation for any of the above incidents.

4.70.2 Continuation of Essential DOD Contractor Services "During Crisis". IAW DoDI 3020.41, Operational Contract Support, paragraph 2.c, has identified S&RTS Services, by the Functional Commander/Director as an essential service.

4.70.3 Performance of Services, during a Crisis or Contingency as Declared by the National Command Authority or Overseas Combatant Commander. In the event of a crisis or contingency, the Contractor shall respond on short notice (within 24 hours) to perform the contractual services. Furthermore, the Contractor shall perform these tasks for an indefinite period of time on a 24-hour a day, 7 days a week basis.

5 GENERAL CONTRACTOR REQUIREMENTS

5.1 General Duties and Requirements. Defined within this section. General duties and requirements specific to the particular port or terminal(s) within the scope of this contract further defined in Section 6.0 – Port - Terminal Specific Requirements. Unless otherwise specified per task, the Contractor shall be compensated for services performed for all PWS tasks in Section 5, per the applicable commodity rate established in the SOR.

****NOTE:** The USG will provide the Contractor with as much information, as soon as known, of any inbound cargo laden conveyance.

5.1.1 Contractor Services. The Contractor's services shall cover the full spectrum of ocean terminal operations to include discharging and loading simultaneously, multiple types of vessels, commercial trucks and railcars, operating staging and call forward areas, including designated areas or facilities for washing or fumigation of imported or exported cargo; in-transit storage or stuffing and unstuffing containers, and warehousing.

5.1.1.2 The Contractor shall have the capability to work multiple vessels simultaneously, working multiple decks, on all vessels, at Ports of Mannheim and Regensburg with operations at each terminal as described in this PWS's Area of Responsibility (AOR) 24 hours a day, seven (7) days per week, and 365 days per year (see section 6 for port location(s)). The USG will give the Contractor as much advance notice of upcoming missions as possible. The Contractor shall handle cargo through all modes of transport Hazardous Materials, sensitive, containerized and general DOD cargo.

5.2 Planning Meeting. Planning meeting(s) will be held prior to each mission at the Ports of Mannheim and Regensburg by the 838th Transportation Company, and technical direction will be given to establish when the Contractor's services are to commence. In addition to specific details of the mission, the COR will discuss required mission dates and mission start time(s), facility terminal services, security, cargo type and status, staging requirements for cargo, and additional supplies/materials that shall be provided by the Contractor.

5.2.1 The Contractor and the COR/OO will agree in writing on all mission requirements, start dates/timelines, schedules for completion. The Contractor shall be informed no less than 24 hours prior to operational start dates/times of any changes that may affect the operation and identify at that time any necessary deviation that will require mutually accepted changes, new start date/time or other requirements.

5.2.2 The Contractor shall keep pace with cargo surge and sustainment of daily throughput capacity, ensuring all conveyances are loaded/ unloaded expeditiously and vessels are loaded/discharged on time to meet required shipping deadlines and timelines as agreed to between the COR and the Contractor at pre-operations meetings.

5.3 Terminal Damage. The Contractor shall take all precautions to protect i.e., piers, roadway surfaces, structures, crane tracks, railroad tracks or any other port and terminal property from any damages sustained, while USG cargo is in the Contractors possession or control, throughout the performance of this contract. Any damage cause by the Contractor shall be at the Contractor expense. The Contractor shall report immediately to the COR any damage caused by the Contractor or their personnel to any USG cargo, commercial conveyances, vessel, or the port.

5.4. Cargo Inspection. Prior to handling cargo, the Contractor shall inspect all inbound Military cargo when the cargo is received (vessel, truck, rail, or by convoy) for damage, leaks, documentation (missing or incomplete), container seal numbers, placards, and for other discrepancies. The Contractor shall report issues immediately to the COR.

5.5 Emergency Response Procedures / Environmental and Hazardous Response

5.5.1. Emergency Response Procedures (ERP). The Contractor shall provide to the COR/Safety Officer a comprehensive safety and security “Emergency Response Plan (ERP) within five (5) calendar days of award date. The plan will clearly outline procedures for emergency HAZMAT cleanup, Petroleum, Oils, and Lubricants (POL) spills from military cargo shipments, or leaking CFE/MHE (e.g., forklifts, tugs, or container top handlers) owned or leased by the Contractor to include mitigating damage to property or the environment.

- Command and control
- (2) Interoperable first responder communication system (E911, computer-aided dispatch, and land mobile radio)
- (3) Mass warning and notification
- (4) Community awareness
- (5) Incident command
- (6) Evacuation
- (7) Shelter-in-place
- (8) Personnel accountability
- (9) Continuity of operations
- (10) Recovery operations
- (11) Functional areas annexes
- (12) Hazard-specific response and recovery plans
- (13) Emergency public information

Hazard specific response and recovery plans (12) will clearly outline procedures for emergency HAZMAT cleanup, or Petroleum, Oils and Lubricants (POL) spills from Military cargo shipments, or leaking CFE (e.g., forklifts, tugs, or container top handlers) owned or leased by the Contractor, to include mitigating damage to property or the environment. When the Contractor does not have sufficient resources of its own, the Contractor shall immediately arrange for outside emergency response personnel who specialize in spill containment and clean up. The Contractor shall pay for the entire cleanup and property damage resulting from the leaking Contractor’s CFE or leaks or spills caused by the Contractor’s negligence, which caused damage to USG cargo shipments. The Contractor shall comply with hazardous spill procedures in the ERP. Other specific hazards can be weather, fire or explosion.

5.5.2 The Contractor shall immediately arrange for outside emergency response personnel who specialize in spill containment and clean up if the Contractor does not have sufficient resources of its own. The Contractor shall pay for the entire cleanup and property damage resulting from leaking Contractor's CFE/MHE or leaks or spills caused by the Contractor's negligence, through which damage was caused to USG cargo shipments. The Contractor shall comply with hazardous spill procedures in the ERP. The Contractor shall ensure all employees, to include sub-contracted labor, are aware of and follow emergency procedures defined by the Contractors ERP plan and according to local fire laws.

5.6 **Environmental Compliance Officer.** The Contractor shall provide a qualified Contractor employee who shall be the Environmental Compliance Officer (ECO) for hazardous materials (HAZMAT) to include AA&E handling. This employee shall be trained to assume command and control over environmental situation(s) by securing the scene/area, providing incident command and control, evacuating personnel, stopping the release, containing spills, decontaminating personnel, and requesting mutual aid from emergency services as required. Services defined in this paragraph are included in the commodity rates established in the SOR (Schedule 1).

5.7 **Leaking Cargo Shipments.** For Military cargo leaking POL or unknown or hazardous substances not caused by Contractor's damage, the Contractor shall not be responsible for the cost of clean-up. However, the Contractor shall attempt to contain the leak and clean-up the spill. The Contractor shall report immediately to the COR and Port Emergency Response Officer (PERO) any leakage or spillage of hazardous substances on the ground or vessel. The Contractor shall not move any cargo leaking or spilling POL or any hazardous substances. The Contractor shall be responsible for clean-up at its expense if/after moving any cargo leaking or spilling POL or any hazardous substances. For leaks not caused by Contractor's damage, the USG will compensate the Contractor for clean-up of spills at established XL/EQR rates (Schedule 2 & 4) of the SOR, and for materials used in the process of the clean-up.

5.8 **Port Emergency Response Officer.** The Contractor shall follow the directives provided by the Port Emergency Response Officer who will be responsible for assuming command and control of the situation by securing the scene, providing incident command and control, evacuating personnel, stopping the release, containing spills and decontaminating personnel. Any clean-up efforts shall be tracked by the Contractor and reported to the COR.

5.9 **Spill Contingency and Response Plan (SCR).** The Contractor shall provide a written Spill Contingency and Response Plan to the COR within five (5) calendar days of contract award date and shall comply with all applicable environmental laws and regulations pertaining to marine pollutants and/or port facilities. At a minimum, this plan shall comply with all applicable directives of the environmental guidance and instructions Maritime Emergency Response Guide (MERG) The Contractor's SCR shall specifically describe how the Contractor will prevent and respond to spill incidents. In addition, an acceptable secondary containment plan must be submitted in writing as part of the SCR.

5.9.1 In the event of accidental or deliberate discharge, and the Contractor fails to mitigate and report the environmental hazard or spill, the Contractor shall be held liable for all costs associated with the incident.

5.10 Hazardous Spills & Supplies. At no additional cost to the USG, the Contractor shall maintain supplies for emergency response for hazardous spills on thoroughfares or roadways within the port. The Contractor shall immediately contain the spill and wait for the emergency chemical response team to arrive. At no additional cost to the USG, the Contractor shall maintain supplies for routine maintenance releases. These supplies shall be available or accessible, in a quantity and size determined by the Contractor, to resolve a ten (10) ten-gallon spill or five (5) five cubic feet of materials, wastes, or contaminants that may potentially affect the environment. The Contractor shall clean and dispose of waste materials per environmental standards.

5.11 Secondary Containment for Hazardous Materials, Wastes and POL's. At the Contractor's expense, the Contractor shall provide containment devices of various sizes when required for temporary and permanent storage facilities that retain POL substances, hazardous materials, and hazardous wastes (i.e., - new or used – oils, fuels, lubricants, solvents, batteries, acids, paints, antifreeze, and/or oily rags, etc.).

5.11.1 The Contractor shall coordinate secondary containment units for all bulk POL storage tanks, fuel cans, barrels, bladders, etc. In addition, secondary containment units' requirements apply to all tanks and/or containers from five (5) to 55 gallons to include mobile tanker trucks used for refueling operations. All secondary containment structures shall be free from soil and sand accumulations.

5.11.2 When loose hazardous materials are required to be stored the Contractor shall coordinate or provide the use of proper hazardous storage cabinets, bins or tanks. The Contractor shall provide to the COR and Port Safety Officer (PSO) a current inventory sheet and associated Material Safety Data Sheet (MSDS) for all hazardous materials being stored.

5.12 Hazardous Material (HAZMAT) Certification. The Contractor shall provide as part of this contract (at contractor's expense) two (2) POCs with HAZMAT certification for oversight in handling hazardous cargo IAW 49 CFR Part 172.704(d) for each operation and port location when handling HAZMAT cargo. The Contractor's personnel shall meet the qualification for personnel who pack dangerous goods, load/unload cargo transport units, handle dangerous goods in transport, and load/unload dangerous goods into/from ships as specified in IMDGC Chapter 1.3, Training and 49 CFR Part 172 Subpart H; Training.

5.12.1 The Contractor shall provide to the COR a list of all personnel by name each day services are ordered of those drivers/operators that will be assigned to handle HAZMAT. The list shall include a statement from the Contractor verifying that individuals performing these driving functions comply with *All Army Activities (ALARACT) Message 069-2014 and AR 600-55*. The USG reserves the right to stop Contractor personnel at any time to verify their qualifications against the approved list of personnel scheduled to perform driving functions. Any driver/operator found to be not listed or non-compliant, the Contractor shall remove that driver/operator from the vehicle or equipment, and the incident shall be documented by the COR who will report the incident in the monthly performance evaluation report.

5.13 Point of Contact (POC). The Contractor shall provide a dedicated POC operationally knowledgeable manager proficient in speaking, reading, and writing the English language to serve as a single POC for the German Ports of Mannheim and Regensburg contract. The Contractor's POC shall interface with the USG during all daily meetings and operations and have decision making authority.

5.13.1 The Contractor shall provide one alternate manager on-site at all German Ports of Mannheim and Regensburg contract locations and each operation for each shift when working 24-hour periods. Those individuals shall also be able to communicate proficiently in the English language, have decision-making authority and shall act as the central POC between the USG and the Contractor during all operations (e.g. rail, truck, stuffing, striping, and vessel operations).

5.14 **Labor or CFE Shortfalls.** The Contractor shall notify the COR immediately for any labor or CFE shortfalls and communicate their plan to rectify those shortfalls prior to operational start times. The COR will document all discrepancies.

5.14.1 The Contractor shall have oversight of all labor assigned to the operation. This includes, but is not limited to, the oversight of all operational areas and labor working (vessel decks, docks, staging lots, rail, truck yards, and traffic routes) within those areas. If any operational delay is the result of the Contractor's shortfall of labor or equipment in all operational areas, the delay will be at the Contractor's expense.

5.15 **Daily and Operational Meetings.** The Contractor shall participate in all meetings regarding all vessel and terminal services to include but not limited to standard daily operations meetings (time and location shall be determined), vessel planning briefs, boarding parties, quarterly command safety meetings, etc. as required. Meetings may be scheduled or unscheduled, and participation is mandatory by the Contractor, or their contract manager(s) attendance shall be considered part the Contractor's management responsibility. The COR will document/file a Contractor Discrepancy Report (CDR) for incidents where the Contractor failed to attend all meetings.

5.15.1 The Contractor shall compare all USG reports used to those produced by the Contractor, and identify any data discrepancies and recommend reconciliations to the COR.

5.15.2 The Contractor shall provide commodity services, general & skilled labor, material, supplies, and CFE/MHE based upon the operational requirements established and agreed upon at the Daily or Operational Meetings.

5.16 **Stevedoring and Related Terminal Services—Import and Export.**

5.16.1 Planning is the process of stating the objectives to include information on labor, services, and equipment for the COR's review, coordination, and concurrence prior to the actual mission or operation often in advance of the USG providing complete information. The Contractor upon notification shall start planning for commodity LO/LO operations.

5.16.2 Receiving is accepting custody and responsibility for cargo as it arrives at the port.

5.16.3 For cargo reception, the USG will:

- Provide command and control as Single Port Operator/Manager for ARTRANS Operations.
- Identify specialized, unique military equipment that require special handling and coordinate for handling this equipment as required
- Maintain time keeping logbook for record of events for all operations
- Provide reports to the Contractor as specified within this contract

- Compare contractor furnished reports with the USG reports, identify further discrepancies, and reconcile them with the Contractor
- Identify the OO, COR & ACOR to oversee contract operations
- Provide a qualified point of contact for HAZMAT documentation and cargo handling
- Provide ICODES pre-stow plans as specified within this contract NLT 48 hours for review with a revised copy provided NLT 24 hours prior to operation
- Utilize GATES or system of record to document movement of cargo
- Provide scanners (PDA), tally sheets or Military Shipping Label (MSL) as applicable to the Contractor
- Process contractor activity pay into GATES or system of record NLT 48 hours after receipt of documentation, (delays to GATES processing may occur due to frustrated cargo records)
- As applicable to type of operations, provide a discharge report, manifest, cargo load list, and GATES on hand report
- Pre-stow plan for vessel load, staging requirements, and when provided, a final stow plan for vessel discharge, to the Contractor
- Assist to resolve cargo discrepancies such as overages, shortages and Hazardous Material (HAZMAT) documentation
- Provide training on scanners (PDA) and USG Documentation System(s), when applicable

5.16.4 **Vessel loading and discharging the USG will:**

- Provide all of the above
- Provide the Contractor with notice, as soon as known, of any inbound vessel, to include vessel configuration, manifested cargo list and stow plans (if available)
- Arrange additional staging area or berthing (if applicable)
- Provide a discharge plan at least 48 hours prior to commencement of operations when possible, including cargo handling special instructions
- Provide when applicable a staging plan at least 1 business days prior to commencement of operations, to include special cargo handling instructions

5.17 Common-User Land Transportation (CULT). The USG defines CULT assets as US Army organic transportation assets, while commercial services are defined as Commercial Line Haul CLH or Commercial Rail service. The Contractor shall ingate CULT assets and CLH or Railcars upon arrival, direct CULT/CLH trucks to designated staging area(s), document railcars providing number, and type of railcars, whereas the Contractor shall inform the Cargo Distribution Section (CDS)/COR/MCS of trucks/railcars arrival and await disposition instructions.

5.18 Commodity Services Loading/Discharging Trucks/Railcars. The Contractor shall load or discharge Inland Transport assets (i.e. CULT/CLH or rail) by best commodity method without causing damage when the transport arrives at the port. The USG will not, compensate the Contractor for discharging cargo for other than by the intended commodity method (e.g. lifting operable vehicles in lieu of driving them). The Contractor shall provide all personnel, CFE/MHE (ramps, tow bars, spanner plates as needed).

5.19 Direct Loading/Discharge of Cargo. Due to deadlines, time constraints, cargo priority, or cargo type. The Contractor may be directed to load/discharge cargo from one conveyance directly to another awaiting conveyance (i.e. vessel to CULT/CLH or rail – CULT/CLH or rail to vessel). The contractor shall agree, when direct loading/discharging cargo, where landing/picking cargo directly from/to CULT/CLH or rail is made in one move, the contractor is entitled to only one commodity. Example(s): Cargo lifted from vessel and landed on M/CLH or railcar pier side or lifted from CULT/CLH or Rail pier side and landed onboard the vessel is one commodity move; payment will be made for vessel load/discharge (1A1 or 1A2) and lashing/unlashing only rates for rail tied down (Schedule 1A1a or 1A2a) shall apply. The Contractor shall be entitled to additional commodity, where direct loading is done in two (2) separate moves. Cargo directed to move from the vessel to staging area or railhead (first place of rest) then directly loaded simultaneously during vessel commodity is considered two commodity moves and commodity payments will be made for both vessel discharge/load (Schedules 1A2/1A1) and CULT/CLH or rail load/discharge (Schedule 1B1/1B2 or 1B3/1B4).

5.20 Discharging CULT/CLH Trucks. The Contractor shall receive cargo by CULT/CLH Truck(s) for discharge (Schedule 1B4). The Contractor shall upon receipt, validate cargo data and location, scan Military Shipping Labels (MSL), manually tally & check MSL data, verifying door security seal numbers, checking shipping documents for discrepancies and inspect all cargo for pilferage/damage/leaks. The Contractor shall report immediately before discharging cargo any pilferage/damage/leaks to the COR. The Contractor shall direct/ground guide all CULT/CLH trucks to designated staging areas for discharging. The Contractor shall inspect and determine operational status of the vehicle/cargo, assist the CULT/CLH truck driver in un-securing the cargo and discharge the cargo by commodity method (LOLO) draying the cargo to its designated final place of rest per the USG provided staging plan. (Schedule 1B4) of the SOR.

5.21 Loading CULT/CLH Trucks. The Contractor shall disposition cargo for onward movement (i.e. port clearance) for its final destination by CULT/CLH trucks (Schedule 1B3). The Contractor shall provide commodity services (LOLO) operations. The Contractor shall call forward cargo, draying cargo from its place of rest per the USGs provided or approved port clearance plan. The Contractor shall tally & check each piece of cargo, document, and inspect cargo documentation reporting any discrepancies to the CDS/COR and load the cargo on each CULT/CLH truck in such a manner that no damage is caused by the Contractor. The Contractor shall ensure vehicles loaded shall have brakes set and secured by one set of chains/straps before movement of CULT/CLH. The Contractor shall assist CULT/CLH driver in removing and reinstalling the transporter components, i.e., sideboards, rails, chains, and if applicable tarp cargo, replace placards and labels (supplied by the USG) as needed and ensure all cargo is secured/tiedown before allowing the CULT/CLH to depart. (Schedule 1B3) of the SOR.

5.22 Mis-shipped cargo. Mis-shipped cargo is defined as the wrong cargo loaded on the correct conveyance for the correct destination. The Contractor shall be responsible for reimbursing the USG for all costs associated with recovery and shipment of cargo in question to the proper final destination. This includes CULT charges, as well as any charges associated with loading and discharging the cargo at both locations.

5.23 Commercial Truck Drivers. The Contractor shall ensure CULT/CLH drivers picking up military cargo (disposition), and before loading any CULT/CLH truck, drivers must have in their possession a valid CDL appropriate to the type of vehicle they operate when picking up Military cargo considered overweight or HAZMAT. (if applicable), Drivers found to be out of compliance shall be reported to the CDS/COR before releasing cargo.

5.24 Commodity Services Loading/Discharging Railcars. The Contractor shall load/discharge railcars when inland rail service arrives at the seaport. The Contractor shall direct/spot railcars into designated rail spurs if needed/requested. The Contractor shall provide CFE/MHE i.e. spanner plates, and ramps and prep railcars for loading/discharge operations. (Schedule 1B1 & 1B2 of the SOR)

5.25 Lashing/Tiedown Inspection. The Contractor shall oversee and inspect all lashing/tiedown on all loaded railcars to ensure all USG cargo (vehicles) are secured per ARTRANS-TEA Modal Instructions (MI) -19, Tiedown Handbook for Rail Movements. Compensation per (Schedule 1B1) of the SOR.

5.26 Loading Railcars. The Contractor shall dray vehicles/containers from their place of rest to the railhead for loading cargo on each railcar per the USG provided rail load plan in a manner that no damage is caused by the Contractor. The Contractor when loading/discharging vehicles shall only allow needed ground guides on railcars when vehicles are being moved/driven into place. The Contractor shall clean all debris/trash from railcars/railhead/spurs upon completion of rail operations. (Schedules 1B1) of the SOR.

5.26.1 The Contractor shall scan, manually tally & check, and document all cargo as well as any nested or secondary loaded cargo (labeled or unlabeled cargo capturing by MSL or data plate) by each railcar as directed by the COR. The Contractor shall also cover cargo with tarpaulins (if requested) and reinstall transporter components (as needed or directed by the COR). (Schedule 1B1) Materials/supplies shall be at (OOP expense).

5.26.2 The Contractor shall during vessel discharge, “if permissible” pre-stage USG cargo at the railhead, near or next to any railcar for future loading. (Schedule 1A2 of the SOR).

5.27 Discharge Railcars. The Contractor shall ensure railcars for discharge, remove tarpaulins (as needed) and remove or reinstall transporter components (e.g., sideboards, rails), unlash, scan, manually tally & check all cargo as well as nested or secondary loaded cargo (capturing MSL data), and discharge vehicle/containers to its designated place of rest per the 838th provided staging plan. The Contractor shall unload railcars in a manner that no damage is caused by the Contractor. (Schedule 1B2 of the SOR)

5.28 Military Convoys. Due to contingencies or training the USG may elect to convoy vehicles and other cargo to/from the designated seaport, whereas the Contractor shall receive or disposition cargo by Military convoy, the Contractor shall provide cargo management, tallying & checking, ground guides, contact maintenance, CFE/MHE, and other support services for arriving or departing convoys. The Contractor shall be compensated for loading or discharging military convoyed CULT assets when/if those commodity service are needed/ordered (Schedule 1B3 or 1B4 of the SOR).

5.29 Vessel Operations

5.30 Vessel Operation Meeting. At the vessel operations meeting held prior to the start of each vessel operation (Load or Discharge), the COR will confirm with the Contractor in writing the mutually agreed upon timeframe for the safe and efficient time schedule for completing each vessel operation. Completion timeframes will be determined based on known factors such as cargo volume, Contractor productivity, stow factors, Required Delivery Date (RDD), number of PODs, consignee cargo mix, distance to staging, and vessel type being worked.

5.31 Vessel Preparation Loading or Discharge Operations. The Contractor shall be responsible for opening and closing vessel services. At minimum, these services shall include the removal or replacement of tarpaulins, battens, hatch covers, temporary covers, and beams with respect to all decks and deep tanks during both “loading and discharge operations”. Compensation for services defined in this paragraph are included in the commodity rates in schedules 1A1 and 1A2 of the SOR.

5.31.1 The Contractor shall provide labor per the task order to perform vessel opening and closing services not otherwise performed by vessel crews. Compensation for services defined in this paragraph are included in the commodity rates in schedules 1A1 and 1A2 of the SOR.

5.31.2 **Vessel Discharge.** The Contractor shall hold safety meetings prior to vessel operation, brief their employees on the operation, move needed Material Handling Equipment (MHE) and materials into place, and prepare for vessel discharge. The Contractor will be briefed on vessel stow plan concepts and decks that will be discharged during vessel operation, whereby the Contractor shall review plans for accuracy. The Contractor and COR shall develop a vessel discharge plan based on the most efficient way to complete vessel operations and shall agree on completion time schedule(s). The Contractor shall verify the location of all cargo onboard the vessel, and inspect cargo prior to handling, and report any damage or discrepancies found while onboard the vessel to the COR. The Contractor shall start breaking and remove cargo lashing gear and determine the status of the cargo operationally, and prepare the cargo for discharge, following the USG’s discharge plan, and dray the cargo to the designated final place of rest per the USG’s staging plan. Compensation for services defined in this paragraph are included in the commodity rates in schedule 1A2 of the SOR.

5.31.3 The Contractor shall document all discharged cargo to include capturing linked, nested, secondary loads, time and method the cargo was discharged (LIFT) of all inbound cargo and within the agreed upon discharge timeline and plan. The Contractor shall stage cargo IAW the USG’s staging plan (e.g., by type, destination or segregation as necessary). The Contractor shall handle multiple classes of cargo including sensitive, classified, hazardous, or refrigerated cargo, per the discharge and staging plan and IAW current applicable regulations. All changes must be approved through the COR. Compensation for services defined in this paragraph are included in the commodity rate 1A2 established in the SOR.

5.31.4 The Contractor shall return all vessel lashing gear per vessel chief mate instructions or to its proper place (lashing bins or wall racks) and clean up any fuel/oil spills, trash, or debris caused due to vessel operation prior to vessel departure. Compensation for services defined in this paragraph are included in the commodity rate 1A2 established in the SOR.

5.32 Discharge Vessel to Other Conveyances. The Contractor may be requested by the USG to disposition (port clearance) priority cargo to other inland modes (i.e., Commercial trucks or Rail) via LO/LO methods. During vessel discharge operations, the Contractor shall remove cargo from its stowed location and dray cargo to the awaiting conveyance. The Contractor shall then prep, load and secure the cargo per loading instruction from the USG. Loading shall also include covering cargo with tarpaulins (as needed), and removing and reinstalling transporter components, (i.e., sideboards, rails, tarpaulins, and spanner plates etc.). Compensation for services defined in this paragraph is included in the commodity rates established in schedule 1A2 of the SOR.

5.33 Vessel Loading. The Contractor shall hold safety meetings, brief their employees on the operation, move needed MHE and materials into place and prepare for vessel loading. The USG will forward a list of anticipated cargo and pre-stow Integrated Computerized Deployment System (ICODES) plans to the Contractor as soon as products are available. The Contractor will be briefed on stow plan concepts and decks that will be used during loading operation, whereby the Contractor shall review plans for accuracy. The Contractor and COR shall develop a vessel load plan based on the most efficient way to complete vessel operations and shall agree on completion time schedule(s). The USG and Contractor shall adjust, or revise stow plans due to late arriving cargo, or last-minute changes. The Contractor shall report any discrepancies, issues, or concerns to the COR. Compensation for services defined in this paragraph is included in the commodity rates established in schedule 1A1 of the SOR.

5.33.1 The Contractor shall load cargo onto the vessel from its place of rest to its final point of stow aboard the vessel, simultaneously lashing and securing cargo and IAW the approved vessel pre-stow plan, completing the vessel loading within the time schedule established at vessel operations briefing between the Contractor and COR. The Contractor shall perform loading operations in “best commercial practices” and in such a manner that the Contractor causes no damage handling the cargo by the Contractor. The Contractor shall have the capabilities to handle multiple classes of cargo including AA&E, sensitive items, classified, HAZMAT and refrigerated cargo IAW the USG’s stow plan. The Contractor shall secure all cargo IAW ARTRANS TEA Reference 55-22, (Marine Lifting and Lashing) or when otherwise instructed by the vessel chiefs’ mate. The Contractor shall coordinate all vessel activity through the COR. Compensation for services defined in this paragraph is included in the commodity rates established in schedule 1A1 of the SOR.

5.34 Lashing or Securing of Cargo Onboard the Vessel. During vessel loading the Contractor shall not allow time to lapse between loading cargo and lashing or securing the cargo in its final stowed position. When cargo is loaded in a temporary stow location, the cargo shall be lashed and secured, with at least one set of lashing gear (front and back).

5.34.1 The Contractor shall also record and report all USG furnished, or Contractor provided dunnage, lashing gear and securing material(s) used aboard the vessel. The Contractor shall furnish an accountability report of USG furnished, or Contractor provided material(s). The Contractor shall inventory and provide an itemized list of material(s) used and submitted to the COR for each cargo operation within 24 hours of completion of each operation. Compensation for services defined in this paragraph is included in the commodity rates established in schedule 1A1a of the SOR.

5.34.2 The Contractor will not be held accountable for delays in vessel operations resulting from circumstances not within the control or responsibility of the Contractor. Factors known to affect productivity may include and are not limited to inclement weather, USG augmentation, vessel condition, lack of tiedown points, or cargo condition.

5.35 In-Stow Lashing & Cargo Inspection. The Contractor shall perform 100% in-stow inspection of each hold or deck loaded on the vessel with the chief's mate or vessel representative upon completion each deck of the loading operations. The Contractor shall perform an in-stow inspection to identify loose tie down equipment, or damages caused during loading operations. The Contractor shall rectify any nonacceptable or loose lashing on the spot during the inspection process. Upon discovery of damages, a joint inspection shall be performed by the Contractor and the COR. The Contractor shall be responsible to prepare a cargo exception report and submit the report to the COR within four hours following the completion of all vessel operations. Compensation for services defined in this paragraph is included in the commodity rates established in schedule 1A1a of the SOR.

5.36 Removal of Materials. The Contractor shall remove all unused dunnage, lashing and securing material. The Contractor shall also remove from vessel all debris, to include broom sweeping, generated by the operation. Compensation for services defined in this paragraph is included in vessel load/discharge commodity rates.

5.37 Storage of Unused Materials. Unused dunnage, lashing gear and securing material belonging to the vessel shall be re-stored by the Contractor aboard the vessel according to the instructions of the vessel master or chief's mate. The Contractor shall remove all Contractor or USG furnished dunnage or other materials from the vessel. Compensation for services defined in this paragraph is included in vessel load/discharge commodity rates.

5.38 Staging. Staging defined as the placement of cargo after its receipt and discharge from any mode of transportation to a designated final place of rest, for future movement for loading a vessel or performing port clearance. The Contractor shall organize cargo as designated by the USG's staging plan to facilitate onward movement, stag frustrated cargo, and control sensitive or hazardous cargo. The USG will communicate changes or events that affect the staging plan as needed.

5.39 Staging Area and Staging Plan(s). The Contractor shall be flexible when providing staging for USG cargo operations. Due to the fluid nature of USG port operations, a clearly defined staging area and utilization plan is essential to mission success as well as mitigating total mission cost. The USG will order staging on an incremental basis for each port operation and reduce or increase staging as each mission dictates. The Contractor and COR shall agree during mission planning meetings on the per square meter(s) per day of use required for initial port reception and disposition operations and the maximum staging area requirement at full utilization. The COR will notify the Contractor thereafter of changes to the initial order. The Contractor shall be compensated for the staging area as outlined in the schedule of rates, by total square meters being utilized on a daily basis as required to accommodate the cargo including access and fire lanes. The Contractor shall notify the COR of staging space ordered but not used so as to control staging cost.

5.40 Staging Area Requirement. The staging area shall be an area or lot large enough to accommodate all USG cargo for each operation. The staging area shall be of hard stand (pavement or concrete). Staging shall be sterile area, free of vegetation, insects, rodents, and standing water. Staging lots designated as landing zones for aircraft shall be clear of overhead obstructions, standing light poles and cleaned and swept (mechanically or manually) prior to its use. The staging area shall be 100% lighted and secured by fencing with gated access 24 hours a day for the duration of the mission for which it's being used.

****NOTE:** See section 6 for additional USG requirements for staging areas.

5.41 Final Place of Rest. The Contractor shall agree the “Final place of rest” as being the designated resting or staged location the USG designates per its staging plan, for onward movement of cargo for vessel load or port clearance (disposition). Interruptions or spotting cargo in route (i.e., on or along the pier) to/from its final place of rest shall be, considered for convenience by the Contractor, and at no additional cost to the USG. However, if the COR directs the Contractor to pre-stag cargo prior to an operation, the USG will compensate the Contractor for spotting cargo per manhour rates per schedule 2 of the SOR.

5.42 Cargo Consolidation & Staging Management. The Contractor shall manage all staging areas/lots/yards in such a manner as to save space and usage. The Contractor shall be responsible for consolidating USG cargo by repositioning/moving/draying the cargo forward as needed. The Contractor shall provide to the COR a daily status report on staging space in actual use, utilization is based on actual cargo footprint including access and fire lanes. The Contractor shall inform the COR of decreased staging/space and shall not charge the USG for staging/space not being used. The USG will not compensate/pay for staging/space where the Contractor failed to manage cargo or failed to inform the COR of those changes. Compensation for services defined in this paragraph are included in all commodity rates established the SOR.

5.43 Weighing Containers. The Contractor shall provide (when requested or labeled weight discrepancy are reported) the gross conveyance weight and the associated conveyance number to the COR, or COR’s designated representative. All containers loaded aboard ship shall adhere to Safety of Life at Sea (SOLAS) requirements. The Contractor shall verify the Verified Gross Mass (VGM) certificate such as DD Form 2781 for all containers. Compensation for services defined in this paragraph are included in all commodity operations/rates established in the SOR.

5.44 Customs and Agricultural Inspection. The Contractor shall provide labor and equipment as needed to support Customs and Agricultural inspections. The Contractor shall move, unload, reload, unstack, and re-stack, removing or reinstalling blocking and bracing, cargo, as needed. The Contractor shall also document activities, container numbers and old and new door seals. Compensation for services defined in this paragraph shall be at XL/EQR rates (Schedules 2 & 4). Security door seals shall be provided by the USG or may be local purchased as cost reimbursable (OOP expense).

5.45 Tallying & Checking. The Contractor shall maintain tally records and documentation for services rendered for all cargo handled during operations. The Contractor shall report all damages and shortages and shall provide a copy of all tally sheets/reports (signed by the checker) to the COR no later than 2 hours after the completion of each shift, unless otherwise specified. Compensation for services defined in this paragraph are included in all commodity rates established in the SOR.

5.45.1 Inclusive of tallying & checking cargo the Contractor shall record all TCNs / scan MSL’s and manually tally (by tally sheet) all cargo. The Contractor shall ensure all cargo scanned, tallied and checked for accountability.

5.45.2 The Contractor shall, at the request of the COR, provide checker(s) for ICODES support, capable of scanning, foot-printing or recording cargo stow locations, for accountability. Contractor personnel will receive materials, supplies, and instruction as needed. Compensation shall be at checker manhour rates as established in schedule 2 of the SOR.

5.46 Documentation. The Contractor shall provide all documentation requested by the COR IAW the PWS. Documentation, defined as the process of capturing cargo data (manually or scanned). Documenting cargo status, and accurate cargo details (e.g., correct dimensions, model number, seal numbers, identification of HAZMAT, linked cargo, or sensitive cargo). Additionally, the Contractor must correctly document activity pay codes for DTS cargo transiting the port, by all modes of transportation. Compensation for services defined in this paragraph are included in all commodity rates established the SOR.

5.47 Scanners. The Contractor shall pick up and return all USG provided scanners and all cargo documentation to the Cargo Documentation Section (CDS) unless otherwise specified by the COR.

5.47.1 The Contractor shall document (scan and manually tally) cargo arriving or departing via vessel, rail, truck, car carrier, drive, tow, shift, transfer, or by convoy.

5.48 Frustrated Cargo. The Contractor shall notify the COR immediately on all discrepancies found with USG cargo. Examples of frustrated cargo, but not limited to (documentation, labeling discrepancies, damage, leaking POL's or hazardous substances, missing or damaged door seals, or missing placards). Frustrated cargo shall be separated from general cargo upon its discovery (reception thru disposition) and placed into a separate area within the staging yard/lot (separation shall apply for hazardous classes). Compensation for services defined in this paragraph are included in all commodity rates established the SOR.

5.48.1 The Contractor shall report in writing on the status of all frustrated cargo, its discrepancy, location, and length of time the cargo was frustrated, and shall make the report every 24 hours to the COR.

5.49 CRANES, GEAR AND MHE

5.48 Lifting Gear and Rigging. The Contractor shall load test all lifting gear and rigging used in connection with all Military operations. All tested equipment shall be tagged, certifying it meets the required industry and DOD standards IAW TB 43-0241. The Contractor shall make available all records pertaining to required inspections, load testing and certification for review by the COR upon request.

5.50 Fixed Gantry or Mobile Cranes. The Contractor shall load/hang test all cranes and its lifting gear per safety standards when handling AA&E before each operation's start time. During operations the crane operators shall safety/hang lift vehicles and containers before fully engaging the full lift of the cargo.

5.51 Rigging School Certification. The Contractor shall provide two personnel (foremen or stevedore) that were school trained and certified in rigging to inspect and rig, heavy lift slings used in all vessel, rail and truck lifting operations. One certified rigger shall be present at all times during lifting operations to ensure safe and proper selection of lifting gear, rigging techniques, and lifting points are being employed and utilized.

5.52 Material Handling Equipment (MHE). The Contractor shall furnish all Material Handling Equipment (MHE) required to perform all stevedoring and terminal services under this contract, to include appropriate Container Handling Equipment (CHE) for handling all containers 20 ft. & 40 ft. in length, and containers with or without lifting pockets. The Contractor shall use container handling MHE (container stacker, top lift) when lifting any container, empty or full width a length 20 ft. or greater.

5.53 Port Authority Cranes. The Contractor shall coordinate with Port Management or Port Authority to reserve/rent port cranes (with crane operator) if applicable, for vessel operations, i.e., floating cranes, fixed gantry cranes, or (mobile Gottwald) dock cranes (100–300-Ton capacity). The USG will reimburse the contractor for the invoiced cost directly per port tariffs rates, unless otherwise stated, compensation for crane operator shall be established in the labor rates on the SOR.

5.54 Mobile Crane Service. The Contractor shall have the capability to provide mobile cranes from 50-250-ton capacity. Mobile crane cost shall include (if applicable) mobilization setup, and tear down, crane rigging gear, fuel, POL, and crane operator(s). The Contractor shall furnish extra heavy lift equipment/gear if needed in addition to crane rental equipment. Compensation shall be reimbursable per an OOP expense.

5.55 Self-Containing Vessel. In some cases, the USG may use USG/MSO controlled vessels where ship's gear (ships crane) and equipment available for use. In the absence of vessel (crew) crane operator, the Contractor shall provide qualified crane operators for vessel crane/lift operations. The Contractor remains responsible for providing crane rigging, spreader bars and gear. Compensation for crane operator shall be established labor rates in schedule 1A1 and 1A2 of the SOR.

5.56 Contractor Inability to Perform Contract Services. The contracting officer on behalf of the USG will determine whether the Contractor is unable to perform services under this contractual agreement and will determine the duration of such inability, such findings of fact to be conclusive on the parties, subject to the Disputes Clause.

5.56.1 The USG at its discretion may source materials to support mission readiness. The Contractor shall account for all USG-owned equipment and supplies not used in the operation and store or return such materials to the USG, as received. "USG-owned" is defined as either material purchased by the USG for the Contractors use in support of this contract, or materials purchased by the Contractor on behalf of the USG for which the Contractor has valid receipts and approved as an OOP expense by the COR.

5.57 Ground Transportation. The Contractor shall provide transportation (i.e., trucks/trailers, van, or buses) at contractor expense for its employees, and CFE/MHE in and around the port, as well as any work site designated by the COR.

5.58.1 The Contractor shall provide when requested by the COR/OO, MHE not covered in schedule 4 EQR (e.g. floating cranes, land-based cranes, mobile cranes, special equipment, special materials, or reimbursable 3PL services). It is required that all additional expenses be pre-approved in writing by the COR regardless of dollar value prior to its purchase or rental. Compensation shall be at reimbursement OOP expense.

5.58.2 Items purchased/rented shall be identified on the TO template (MISC. Tab) form by the OO and certified as necessary by the COR. The Contractors invoice for miscellaneous expenses shall detail each service or supply, the rate per unit, number of units and total extended price, accompanied by the vendor receipt/invoice as substantiating documentation. The USG will not reimburse for any miscellaneous expenses without all substantiating documentation (vendor receipt/invoice) attached. For miscellaneous supplies and durable goods not listed under a specific schedule, compensation shall be at reimbursement OOP expense.

6.0 PORT - TERMINAL SPECIFIC REQUIREMENTS

6.1 **Scope of service.** This PWS covers handling DOD exported and imported cargo by the 838th US Army Trans Co located in Germany, the following specific requirements for the German Ports of Mannheim and Regensburg contract located in the country of Germany are listed below.

6.1.1 The Contractor shall be required to provide high operational tempo (OPTEMPO) (including working multiple decks simultaneously on multiple vessels) S&RTS services, including all labor, material, and equipment per all requirements stated in the PWS at the port referenced above. In cases where port tariffs supersede certain stevedore requirements, the Contractor shall remain ready to provide full services when requested by the USG.

6.1.2 The Contractors' services shall cover the full spectrum of ocean terminal operations to include discharging and loading simultaneously, multiple types of vessels, trucks and railcars, operating staging and call forward areas, including designated areas or facilities for washing or fumigation of imported or exported cargo and in-transit storage or warehousing.

6.2 Additional Physical Security.

6.3 **Port Access** The Contractor shall ensure all Contractor personnel must at all times adhere to all security requirements set forth by the authorities of the Ports of Mannheim and Regensburg, and the Commander of the 838th.

6.4 **Physical Security at Port.** The Contractor, at the request of the USG, shall take additional physical security measures to maintain heightened security requirements for USG personnel and cargo in addition to host nation forces or port security. The Contractor shall discuss and receive written approval from the COR for additional security measures prior to taking action. Physical security is the protection of people, property, and physical assets from actions and events that could cause damage or loss. This includes protection from fire, flood, natural disasters, pilfering, theft, vandalism, and terrorism. Physical security includes measures that are designed to deny unauthorized access to facilities, equipment and resources and to protect personnel and property from damage or harm shall include but not limited to containers for walls or storage, concrete barriers, fencing, locks, or contracted security personnel. Compensation shall be per schedule 8 (OOP) of the SOR.

6.5 Container Security Wall. The Contractor shall, at the request of the COR, provide a shipping container wall. The containers shall be placed end to end and in such a manner as to give 100% unbroken space between each container, with a single entrance and exit, and encompass the radius designated by the COR. Containers double-stacked shall be locked with container locks at each corner between the upper and lower container. Compensation for rental of containers shall be billed per Twenty-Foot Equivalent Unit (TEU), per day and invoiced as a rate (Schedules 6) of the SOR.

6.5.1 The Contractor shall be compensated for providing the containers and for the delivery, (2) setup and dismantling. The Contractor shall be compensated for providing the containers and for the delivery, setup, and dismantling. The Contractor shall provide daily rental fee for each container that will include the cost for the transportation, loading or unloading from a conveyance, placement, or displacement on the port tarmac in order to construct the required security perimeter wall. Compensation shall be based on rates established schedule 6 of the SOR.

6.6 Portable Fencing. The Contractor shall provide security fencing when requested. The fence shall be chain link in type, no less than three (3) meters in height and topped with barbed wire (if needed). Fencing shall be supported to withstand high winds and or intrusion. The fence shall be enough to secure the entire designated area and be accessible by gates large enough to allow two-way vehicle traffic with locking mechanisms. Fencing shall be used to secure all USG cargo staged at designated facility or port area. Compensation shall be based on a per meter bases, cost shall include all gates, hardware, barbed wire, fittings, supports, and installation and/or removal rates (Schedules 6) of the SOR.

6.7 Personnel List. A comprehensive list of personnel the contractor may use during the duration of this contract shall be submitted within a minimum of 2 days of contract award to the COR. The list shall identify full name, residency and employer/company name for a reasonable amount of personnel working at the port/ terminal. The list will not be more than double amount normally needed and shall be submitted with a legible of a valid identification document. When submission of a new person is necessary it shall always be in substitution of an already cleared person. Substitutions are only accepted in order to maintain a reasonable amount of cleared personnel that have authorized entry to the port / terminal. The contractor is responsible to ensure that, one (1) day prior to start of operations, all personnel are indeed cleared for entry.

PERSONNEL THAT ARE NOT PRE-CLEARED, THEREFORE NOT LISTED AT SENTRY GATES, SHALL BE DENIED ENTRY AND USG WILL NOT BE CONSIDERED LIABLE.

6.8 Law Enforcement/Counterintelligence. In the event of a known or potential intrusion, the Contractor shall consent to responding counterintelligence or law enforcement investigative agency requests to apply forensic analysis tools to Contractor information systems affected by the intrusion, including monitoring tools, imaging tools, and any other techniques the agency seeks to apply to effectively analyze the intrusion. The Contractor shall allow the responding counterintelligence and/or law enforcement investigative agency to image affected systems, including systems containing proprietary information. Nothing in this contract shall limit the ability to conduct law enforcement or counterintelligence activities, or other activities in the interest of the USG.

6.9 Safety (Additional Port Safety)

6.10 Training, Tracking, and Reporting. The Contractor shall maintain CFE/MHE training records for all employees, stevedores, longshoremen or tallyman and provide confirmation, with dates trained, for personnel who will be on the port and performing related tasks daily.

6.10.1 The Contractor shall ensure requirements of the Occupations Safety and Health Administration. All personnel reporting for work must be dressed so that no additional hazard is created and must wear safety shoes and hard hats.

6.11.2 The Contractor shall adhere to the 838th TB working safety program. These programs will be administered by a Joint Committee of Management and Labor in each port and shall utilize the general work rules; and also encompass safety and health matters arising under various statutes, including the Occupational Safety and Health Act.

6.11.3 Operating between dusk and dawn or as requested by the COR. Compensation for mobile light towers shall include transfers, setup, and removal at established rates in (Schedule 4) of the SOR.

6.11.4 The COR and USG Safety Representative (including Unit Safety Officer, Battalion - and Brigade Safety Office) are conducting safety inspections/assessments on Contractors Safety Program per mission, annually or when discrepancies get reported according to the QASP. General inspections are compulsory and will be announced at least 24 hours in advance. The USG reserves the right to carry out spot checks for specific problems without announcement.

6.12 Additional Administrative.

6.13 Hours of Operation. The Contractor may be required to perform simultaneous operations at **contracted ports** 24 hours per day, Seven (7) days per week, and 365 days per year. The USG will give the Contractor as much notice of upcoming missions as possible or no less than 48 hours in advance. A planning meeting will be held prior to each mission at the designated contracted port, and technical direction will be given to establish when Contracted services are to commence. In addition, the COR/OO will discuss specific details of each mission and operation, type of cargo, required mission dates/timelines, facility support, vessel/terminal services, security, and what CFE/MHE, materials/supplies are to be provided by the S&RTS Contractor.

CFE/MHE positioning, and set-up will take place prior to operational start time. For the purpose of this contract working hours/shifts are broken down for the contracted ports as follows: (subject to change)

Regular or normal working day shall consist of eight (8) hours from 06:00 A.M. to 14:00 PM, from 14:00 P.M. to 22:00 A.M., from 22:00 A.M. to 06:00 A.M. and the regular or normal working week shall consist of forty (40) hours made up of five (5) regular or normal working days from Monday to Friday additionally eight (8) hours on Saturday until end of first shift unless otherwise in conflict with rules and regulations governing the Ports of Mannheim or Regensburg.

Equipment positioning and set-up will take place prior to operational start time. For the purpose of this contract working hours/shifts are broken down for the port as follows:

Monday thru Saturday, Day / Night Shift Schedule

1st Shift	06:00 – 14:00
2nd Shift	14:00 – 22:00
3rd Shift	22:00 – 06:00

Sunday & Holidays Day / Night Shift Schedule

1st Shift	06:00 – 12:00
2nd Shift	12:00 – 18:00
3rd Shift	08:00 – 24:00

4th Shift Only if applicable on Sundays & Holidays 24:00 – 06:00

6.14 Meal Hours and Break Times: Meal hours and break times (subject to Labor Agreement) shall be for the 1st Shift Monday thru Saturday from 09:45 - 10:15 and on Sundays/Holidays 08:45 – 09:15. 2nd Shift Monday thru Saturday from 18:15 – 18:45 and on Sundays/Holidays 14:15 – 14:45. 3rd Shift Monday thru Saturday from 02:30 – 03:00 and on Sundays/Holidays 20:45 – 21:15. 4th Shift Sundays/Holidays 02:45 – 03:15 or as otherwise provided in the local agreement.

6.15 USG Operational Hours (subject to change). The Contractor shall at the discretion of the USG extend/change operational hours for normal 1st shift hours will be from 0600hrs to 1400hrs, 2nd shift hours will be from 1400hrs to 2200hrs and 3rd shift will be from 2200hrs to 0600hrs.

6.16 Shift Change. The Contractor shall be responsible for all personnel (staffing or subcontracted), shared goal of protecting the safety and health of all personnel employed in the operation and regulating stevedoring or longshoring operations to best accomplish the safe, efficient and orderly movement of cargo. The Contractor shall provide fresh labor at the beginning of each workday and each shift, who shall have the required rest hours as per local regulations or CBA within 24-hour period. The Contractor shall further evaluate the fatigue of its labor when/if USG operations are continued into 2nd or 24-hour operations, extended work hours may increase the risk of injuries and accidents and can contribute to further worker fatigue. The USG at discretion may require the Contractor to replace workers who exhibit poor judgement or decreased alertness or appear fatigued. The COR will notify the Contractor of its observation of those worker(s), and the Contractor shall determine if justifiable cause for release.

6.17 Information. The USG will furnish Managerial Information as follows:

- Advance information and documentation as it become available concerning cargo released for shipment to/from the terminal.
- Inbound ships due with retrograde cargo, berthing, and dates to be worked.
- Inbound cargo on/from other conveyances truck Manifests, bills of lading, or other documents needed for invoicing payments.
- A listing of cargo to be loaded on each ship and the pre-stow plan(s) for vessel loading, and/or discharge plan(s) and staging plan(s) for discharge operations.
- Disposition and marking instructions for retrograde cargo and the arrangement of inland transportation.
- Specifications for the processing of Military vehicles.
- Cargo Status Reports, to include:

- Aged Cargo Reports
- Weekly Open Transfer Reports, if deemed mission-relevant by the COR.
- Daily On-Hand Reports - Import/Export, if deemed mission-relevant by the COR.

6.18 **USG Forms.** Blank USG forms required for operations as described within the Technical Exhibits.

6.19 **Port Facility Support**

6.20 **Open Storage and Staging Lots/Yards.** The Contractor shall provide secured area(s) for storage or staging Government cargo.

6.21 **Portable/Temporary Office Space.** Upon the request of the USG, the Contractor shall provide temporary office space. Office space shall be no less than 160sf interior space and located within the operational area (staging or pier side) for use by ARTRANS personnel only, for during vessel or terminal operations.

6.21.1 Temporary Office space shall be equipped with office furniture (3ea - 6ft folding tables & 10ea folding chairs). Office space shall have environmentally controlled heat/AC for year-round use and shall have sufficient standard 120-volt electrical outlets or 120/240-volt transformer, interior lighting, lockable door(s) (keys provided). Office space shall have USG approved internet connection (200mbps downloadable speed) with unrestricted use.

6.21.2 The office space shall be accessible 24/7 during each operation, unless otherwise stated. The temporary office space shall be self-contained or have an external power source (generator or electrical hard-wired). The Contractor shall be responsible for providing cleaning & sanitizing service and shall include hard wiring electrical, or 15kw generator (fuel and maintenance included) transportation, placement, setup and removal to and from its designated location. Except where otherwise notated, the Contractor shall be compensated at the rates set forth in schedule 6 of the SOR.

6.22 **Portable Latrines and Hand Washing Station.** The Contractor shall provide portable latrines (port-o-lets) installed in the operational area during each mission. The latrines shall be water flushed or chemical type and supplied with toilet paper, soap and hand towels. Hand washing stations will be equipped with potable water, hand sanitizers, and paper towels. The Contractor shall be responsible for providing cleaning & sanitizing service and replenishment of supplies for latrines and hand washing stations once per day. The Contractor shall provide portable latrines and hand washing stations in 2 to 1 ratio (2) latrines to (1) one handwashing station billed as a LOT. The number and location of each LOT will be determined in the planning meeting. Compensation shall be per LOT as established rates in schedule 6 of the SOR. Upon request the Contractor shall provide a Mobile Sanitation Trailer (MST) containing a minimum of 6 commodes and 6 sinks.

6.23 **Trash Disposal Service.** The Contractor shall provide (when ordered) refuse or recycling containers for collection or debris and recyclable trash, each container shall be capable of holding and have a minimum 8.5 cubic meters of space. The Contractor shall be responsible for emptying each refuse/recycle container when/as needed or requested by the COR. The number and location of refuse/recycling containers will be determined by the COR and the Contractor during operations planning phase/meetings. Compensation shall be at the daily rental per container, shall include dumping/emptying the container as needed mobilization setup, removal and clean up established in schedule 6 of the SOR.

6.24 **Labels.** The contractor shall provide all appropriate labels, placards and waterproof envelopes for documents for rail cars as required by the Gefahrengut-Verordnung-Eisenbahn (GGVE) of the Deutsche Bahn AG. The contractor shall be compensated in the SOR.

6.25 **Lumber & Supplies.** The contractor shall provide lumber in quantities and sizes as ordered by the COR. Lumber will comply with the specifications as ordered, i.e., softwood, quality class 2/3, cutting class, A/B, insect and bark free, etc. Wood packing material must be in compliance with the United States Department of Agriculture (USDA), APHIS Import Regulation (ISPM-15). Compensation for Lumber. The contractor shall be reimbursed OOP expense cost only for lumber received after verification and approval of the contractor provided delivery documents by the COR.

6.25.1 The contractor shall return or store any unused Government-provided materials to the Government, upon completion of work.

6.26 **Rinsing Services.** When ordered by the COR, the Contractor shall provide or arrange 3PL services for final rinsing services of export cargo destined for Continental United States (CONUS) locations. The Contractor shall provide a sterile staging area meeting the standards specified by the USG representative (Agriculture Inspector) and located adjacent to vessel birthing as possible. The rinsing will be performed in this sterile area and shall include the rinsing of the land transportation equipment used for the transportation of the equipment to be exported. Compensation shall be Contractor man-hour and equipment rates established in the SOR or as an actual expense as a 3PL expense.

6.26.1 The Contractor shall ensure equipment cleanliness meets the standards specified by the USG representative (Agriculture Inspector) present at the rinsing location prior to moving the equipment to the sterile staging area on their terminal or port lot. Any equipment leaving the rinsing area without the approval of the USG Inspector will be returned to the rinsing area for final inspection at no additional cost to the USG. Rinsing and inspecting of export equipment will only be conducted during daylight hours. The Contractor shall not off-load non-rinsed and non-inspected equipment on their terminal or port lot for later rinsing and inspection, unless specifically authorized by the COR. Failure to gain USG approval will be at the Contractor's own expense. Compensation shall be Contractor man-hour and equipment rates established in the SOR or as a 3PL Expense as an actual cost.

6.27 **Open Storage and Staging Lots/Yards.** The Contractor shall provide secured area(s) for storage or staging USG cargo.

6.28 **Staging Lots/Yards.** The area needed for staging shall accommodate all DOD sponsored cargo transitioning the port. All areas designated as staging yards/lots used for receiving cargo from or to trucks, rail, or vessel must be available for the duration of each Military operation. All areas must fall within the radius of the port and accommodate the simultaneous reception and disposition of all cargo during the length of those operations as agreed upon between the Contractor and the COR. Staging requirements may increase or decrease as USG cargo is received or dispositioned. Compensation shall be at established usage rates in schedule 6 of the SOR.

6.28.1 The Contractor shall set up Staging Lots/Yards with cones and signage, and erecting shelters with water points IAW staging diagram provided by COR. Compensation shall be inclusive of all commodity rates established in the SOR.

6.29 Storage Lots/Yards. Depending on Status of Forces Agreement or international agreement, the DOD may be exempt from storage charges. In those cases, the Contractor shall not include such charges in the SOR nor bill the USG for such charges. Compensation for storage of cargo shall be at rates established in schedule 5 of the SOR.

6.30 Mobile Light Tower. The Contractor shall provide mobile light towers in quantities designated by the COR. Each light tower shall be sufficient in power (minimum 1,000 watts) with multiple directional headlamps to maximize illumination of the operational areas. Light towers, placed no further apart as to create an uninterrupted light stream throughout the operational or perimeter areas. Each light tower shall include routine maintenance and refueling as needed, light tower found to non-operational shall be repaired or replaced as soon as known. The Contractor shall ensure that all light sets are always operational and operating between dusk and dawn or as requested by the COR. Compensation for mobile light towers shall include transfers, setup, and removal at established rates in schedule 4 of the SOR.

6.31 Supplies. When requested by the COR, the Contractor shall furnish materials and supplies in connection to all operations as needed for cargo reception to its disposition and other terminal services as required by the USG. Materials and supplies include, but are not limited to, twist ties, tie down straps, dunnage, fuel and maintenance supplies. Securing material for work performed under this contract will be purchased on behalf of the USG by the Contractor and will be reimbursed for as an OOP expense. Dunnage and lashing materials shall be of grades and quality suitable for its intended purpose and acceptable to the COR. Materials shall be in quantities, sizes and dimensions specified, and delivered shipside or such other location(s) as determined by the COR. Any materials provided for the USG but not used shall be retained by the Contractor for the USG and maintained in quantities for future use and report on a monthly basis. Any unused materials provided for USG use must be inventoried and kept in a secured, dry location and returned to the USG upon completion/performance of this contract.

6.32 Securing Material. The Contractor shall furnish additional lumber, dunnage and lashing material required for securing of cargo, above what is provided by the USG. Compensation for these supplies, or materials shall be as a cost reimbursable OOP expense.

6.32.1 If the International Standard for Phytosanitary Measures (ISPM)15 (Heat Treatment) wood is required, the additional cost shall be at an OOP expense.

6.32.2 If available, the USG will provide lumber, dunnage, nails and lashing material in a ready-to-use condition required for the securing of cargo. The Contractor shall provide all materials required in excess of those provided by the USG.

6.32.3 Storing Materials. The Contractor shall be responsible for the sorting, stacking, and storing within the port area the dunnage, lumber, and lashing material provided by the USG to be used by the Contractor in conjunction with cargo operations. A report of USG furnished securing material shall be provided to the COR upon completion of each operation. Compensation for storage in the port area of USG furnished securing material, and for the preparation of the reports of USG materials used for each operation is included in the applicable commodity rates.

6.34 Customs Documentation. The USG will provide all customs documentation necessary for clearing all cargo from/to the port.

6.35 USG Furnished Facilities, Supplies, Services, and Equipment. There is no known GFE associated with the contract; however, the Government may need and shall request the Contractor provide materials or supplies for its use. Compensation for these supplies, or materials shall be at cost reimbursable OOP expense; furthermore, any supplies or materials purchased on behalf of the Government shall become its property and be considered GFE. At which time, the Contractor will be required to follow all GFE specific requirements as required by FAR 52.245-1, Government Property, and this PWS.

6.36 Additional Contractor Duties.

6.36.1 The Contractor shall be responsible for providing administrative vehicles such as ATVs, vans, buses or pickups for transportation of their personnel in and around all port/s to include all work sites. In addition, the Contractor is responsible for the movement of equipment to and from designated work sites at their expense.

6.37 Additional Port Requirements.

6.38 Rail Operation. The Contractor shall inspect railcars for acceptance and report the railcar prior to rail load operation. When not accepted, the Contractor must report those railcars to the COR and/or to the rail Cargo Distribution Section (CDS). Loading railcars not inspected for usability shall be at the Contractor's expense to discharge cargo for reload. The Contractor shall prep railcars for loading (e.g., set chain, raise 5th wheels, raise and position corner pockets within the railcar to accept containers, and ensure locking pins or hooks are operational, etc.) and shall remove debris from railcars, following unloading operations. Debris may include but not limited to lumber, nails, fasteners, and paper. Furthermore, the Contractor shall also secure lashing chains. All rail services are inclusive of Commodity rates as established in schedules 1B1 and 1B2 of the SOR.

6.38.1 During daily operations meeting when labor order is placed, the Contractor along with the COR will determine the completion time for rail load, lash, and inspection in order to meet port clearance requirements. The Contractor shall ensure all cargo items are ready to pass inspection prior to inspector's arrival, to include proper chain tension, loose items removed or secured, closed/secured, skirts secured.

6.38.2 The Contractor shall dray containers from the vessel and/or various staging areas to the railhead and load the containers onto railcars IAW the load plan. Only mobile cranes or top pick loading equipment, approved by the COR, shall be used for lifting/loading heavy lift equipment. Lashing and securing of containers and other equipment on rail cars shall be performed to IAW ARTRANS-TEA MI 19 Tie-down Handbook for Rail Movements and IAW DOD to the standards and satisfaction of railroad inspectors. Spanner plates (when used) will be secured between railcars, and debris policed within the rail yard upon completion of rail operations.

6.39 Truck Operation. The Contractor is responsible for managing yard operations to include the call forward of commercial trucks for both inbound and outbound. The USG will provide at the daily operations meeting an appointment list and summary of trucks expected inbound and outbound by location. This list is only an estimate and is subject to change. The COR will notify Contractor upon receiving information on changes. All truck services are inclusive of Commodity rates as established in schedules 1B3 and 1B4 of the SOR.

6.39.1 The Contractor shall move containers and vehicles from the vessel and/or various staging areas to a designated area for loading onto commercial trucks. The location of truck loading may change from time to time due to expediency, operational necessity, or space.

6.39.2 Due to deadlines and time constraints, cargo may also be directed to move from the vessel to truck conveyances directly, in which case Commodity payments will be made for both vessel discharge/load and truck load/discharge operations.

6.39.3 The location of truck loading can change due to expediency, operational necessity, or space. The USG will provide at the daily operations meeting the intent for unload location.

6.39.4 The Contractor shall unload and load conveyance IAW local EU governing authority.

6.39.5 Prior to any movement of assets, the Contractor shall certify to the COR, all CFE/3PL meets minimum safety and serviceable standards listed but not limited to the following:

- Semi-tractors or trailers will have no obvious leaks (oil or air), proper functioning brakes, steering, operational truck and trailer lighting.
- Tractor/trailers must be in suitable size and configuration for the cargo load.
- Trailers decks shall not have loose, or missing panels or be unserviceable as determined by the COR or USG personnel.
- Trailers (flatbed and lowboy shall be configured to meet the weight class of the cargo for which they are used (i.e., dual or triple axels, tonnage capacity and width, attached ramps or detachable goosenecks)
- All tires (including mandatory spares) shall pass wear and tear inspections, (i.e., no tears, separated treads, holes, sidewall blisters, bald or bald spots).

6.39.6 The Contractor shall ensure their or 3PL drivers/operators are not tired, ill or under influence of any controlled substance or alcohol. The contractor shall ensure all driver/operators shall carry valid driver license and work permits for category of vehicle that will be driving or operating.

6.39.7 The Contractor shall provide, backup driver/operators, vehicle repairs, recovery and/or replacement, as well as casualty evacuation along any roadway routes during all movement hours. The Contractor shall arrange for proper MHE needed to load or discharge cargo as needed in route and at final inland destinations.

6.39.8 The Contractor will obtain port removal/entry permits and necessary for customs clearance for all cargo. Obtain special passes/permits and road passes as required.

6.40 Damaged, Lost or Pilfered. The Contractor shall immediately notify the COR, as occurs or as first discovered, if any cargo is damaged, lost or pilfered while in the care, custody or possession of the Contractor. The Contractor shall submit a full written report of the facts and extent of such damages or loss to the COR within 24 hours. The Contractor shall use the Cargo Discrepancy Report (TDR Form 361) for damage estimated at \$2,000.00 or less. The Contractor shall use the DA Form 285 for damage estimated to exceed \$2,000.00.

6.40.1 The Contractor shall be held accountable for all costs associated with damaged cargo, unless otherwise reported at the time of discovery to the COR. If the USG witnesses the Contractor's employees causing damage to cargo, equipment, vessel, commercial carrier assets, etc., the Contractor's representative during the operation will be notified for action on above reporting. The Contractor is held responsible regardless of the Contractor's presence at the time the damage event occurred.

6.41 **Sensitive Cargo.** For sensitive cargo shipments, the Contractor shall review commercial driver's paperwork for a DD Form 1907, Signature and Tally Service. The Contractor shall immediately notify the COR for a USG representative to sign the DD Form 1907 prior to the Contractor accepting custody of the shipment. The Contractor shall ensure all openings (door, hatches or ramps) are secured and sealed using seals provided by the USG.

6.42 **Hazardous Cargo.** For hazardous cargo shipments, the Contractor shall review driver's bills of lading and other driver's paperwork (e.g. DD Form 2890) to determine if a shipment is hazardous. The Contractor shall apply additional placards if shipment arrives with any placards missing and it is confirmed the shipment is HAZMAT. The transportation and handling of hazardous cargo for shipment shall be subject to Title 49 of the Code of Federal Regulations (49 CFR) Parts 100-185 and International Maritime Dangerous Goods Code (IMDG).

6.43 Deliverables.

6.43.1 All deliverables shall meet professional standards and meet the requirements set forth in contractual documentation. The Contractor shall provide all deliverables electronically in Microsoft Office (Word, Excel, PowerPoint, Project, etc.) formats pursuant to the following schedule. Each deliverable is a contractual requirement. For those that do not specify a measure or standard, the measures and standards are IAW standard commercial practices.

TABLE 2

PWS Para	Deliverable Title	Delivery Schedule
All Sections	Safety, Security & HAZMAT Compliance	Compliance with Standards IAW PWS
3.0	Safety Management Program/ Hazard Analysis	Due to the COR within five (5) days after contract award and updates.
3.3.2	Accident Prevention/Safety Program	Due to the COR within five (5) days after contract award and updates.
3.3.5	Personal Protective Equipment (PPE) Safety Hazard Analysis	Due to the COR within five (5) days after contract award and updates.

3.4	Contractor Safety Briefings	Conduct and document (by name) personnel safety briefings for all workers prior to all operations.
3.7, 3.8, 3.9	Reportable Incidents, Accidents and Damage	The Contractor shall submit initial notifications until the end of the shift, accident reports and investigations within 8hrs, 24 hrs. and 30 hrs. as applicable.
4.1.2	Port Licensing and Permits.	The Contractor or its named Subcontractor shall possess a valid and current Business License (BL) issued by the country of Germany As well as a work permit issued by the applicable Port Authorities from the Host Nation country (OCONUS) as evidence that Contractor or its named Subcontractor(s) has legal right to work in/at the country/port designated within this PWS (see geographic info section 6.1). The Contractor shall provide documentation/copies (Prime and Subcontractor(s)) to the CO for record when awarded this contract.
4.3	Union Agreements and Port Tariffs	Labor Rules & Agreements and Port Tariffs. The Contractor shall submit copies upon award of this contract to the USG of all current labor rules, labor agreements or Collective Labor Contract (CAL) (if applicable), and current year published port tariffs (English version). The Contractor shall also furnish updated information about specific changes to local work rules, labor agreements, and new port tariffs affecting USG cargo operations IAW the performance of this contract as they are available.

4.7, 4.8, 4.9, 4.10	Ordering, Shift change, Canceling Services	The Contractor and COR/OO shall agree on ordering services to include daily cut-off time(s) for ordering all S&RTS services. Procedures for ordering services shall be provided within two (2) calendar days of contract award date. Unless otherwise stated elsewhere, the USG shall order services No Later Than (NLT) 1400hrs for 0800hrs start times for the next day or 1400hrs for 1800hrs start times for the same day. Example: Order services on Monday at 1400hrs for Tuesday morning 0800hrs start time, Monday start times shall be ordered on Friday. Cancellation of services shall include daily cut-off time(s) for canceling all S&RTS services. Procedures for canceling services shall be provided within two (2) calendar days of contract award date. Unless otherwise stated elsewhere, the USG will and the Contractor shall agree, ordered services shall be canceled NLT 1700hrs the same day as ordered for 0800hrs start time the next day, or at 0700hrs the next day for 1300hrs start time the same day. Example: Services ordered on Monday at 1400hrs for Tuesday morning 0800hrs start time, may be canceled at or before 1700hrs the same day as ordered.
4.12, 4.13, 4.14	Three (3) Written Estimates	The Contractor shall provide to the COR/OO three (3) written estimates for all additional services, materials, supplies, or rental equipment prior to the purchase or its rental for COR/OO approval. OOP expenses do not include expenses inherent to performing S&RTS commodity work. OOP expenses are for the purpose of purchasing as needed new supplies or non-durable goods on behalf of the USG.

4.11	Reconciliation and Validation	The goal of the 838th is to reconcile, complete, and process the Contractors invoice and close all TO's within 21 calendar days of the completion of each task order. The COR/OO shall determine, and the Contractor shall agree to reconcile and settle all task order(s) within a set timeline and provide an invoice to the COR for payment. The Contractors failure to reconcile TO's within the below perimeters will result, with the USG finalizing TO's based on its documented evidence of the Contractors performance, whereas the Contractor shall agree/accept the USG's "final TO" for invoicing.
4.67	Cargo Accountability and Documentation	Within ten (10) days after contract start date, the Contractor shall submit to the COR a sample of all documentation used for cargo accountability purposes.
4.45	Transition of S&RTS Contract Services	The Contractor shall within seven (7) calendar days of expiration/award of the S&RTS contract shall begin a joint inventory with the COR This joint inventory shall be completed and all issues resolved within seven (7) days of commencement unless a longer period is approved by the CO. Transfer of all property shall be completed within seven (7) days after completion of the joint inventory.
4.56	Quality Control Inspection Plan (QCIP)	The Contractor shall provide a QCIP to the CO and COR within 10 days of contract award. It will emphasize quality control over all contract requirements. The QCIP will contain a Quality Control Inspection Checklist (QCIC) which, at a minimum, will contain all elements of the PRS.
4.57	Quality Control Inspection Checklist (QCIC)	The Contractor shall submit the QCIC to the COR upon completion of every vessel operations mission. Compensation for services defined in this paragraph are included in all commodity rates established the SOR.
5.5, 5.5.1	Emergency Response Procedures	Compliance with Standards IAW PWS Section

5.6	Qualified Environmental Compliance Officer (ECO) for HAZMAT handling HAZMAT	Compliance with Standards IAW PWS
5.9	Spill Contingency and Response Plan (SCRP).	The Contractor shall provide a written Spill Contingency and Response Plan to the COR within (5) five calendar days of contract award date and shall comply with all applicable environmental laws and regulations pertaining to marine pollutants and/or port facilities
5.4	Cargo Inspection Verification of Seal Numbers	Immediate discrepancy reporting to COR and annotated on TCMD
5.15	Meeting Participation	At least one representative from the Contractor at all meetings as directed by the COR/ACOR
5.19	Timeliness of Handling Cargo	Load/discharge within the agreed time frame to avoid charges incurred due to delays.
5.31.2	Vessel Discharge	Complete Execution of Discharge Plan with no cargo left on vessel in the agreed timeframe.
5.33	Vessel Load	Accurate Execution of Stow Plan within agreed upon timeframe.
5.45	Tallying & Checking	The Contractor shall provide tally and checking services for all cargo handled during cargo operations. The Contractor shall report all damages and shortages and shall provide a copy of all tally sheets/reports (signed by the checker) to the COR no later than 2 hours after the completion of each shift, unless otherwise specified. Compensation for services defined in this paragraph are included in all commodity rates established the SOR.

5.48	Frustrated Cargo	The Contractor shall notify the COR immediately on all discrepancies found with USG cargo. Examples of frustrated cargo, but not limited to (documentation, labeling discrepancies, damage, leaking POL's or hazardous substances, missing or damaged door seals, or missing placards). Frustrated cargo shall be separated from general cargo upon its discovery (reception thru disposition) and placed into a separate area within the staging yard/lot (separation shall apply for hazardous classes). Compensation for services defined in this paragraph are included in all commodity rates established the SOR.
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6.44 Minimum Productivity. The Contractor shall provide labor, gear, and equipment to maintain minimum productivity of 15 pieces per hour, loading or discharging of barges.

6.45 Performance Requirement Summary. The PRS represents the most important contract objectives that, when met, will ensure contract performance is satisfactory. Although not all PWS requirements are listed in the PRS, the Contractor is fully expected to comply with all requirements in the PWS.

6.45.1 Performance standards define required services. The USG will perform surveillance to determine if the Contractor meets or does not meet the standards of this contract. The PRS Matrix below includes performance standards that the USG will use to evaluate the Contractor's performance and will compare the Contractor's performance with Acceptable Quality Levels (AQL).

TABLE 3
See Below

Vessel Type & operation	Average TEU & vehicles count	Available Loading Space (fully Loaded)	Total Vessel Operational hours for Discharge (D) Load (L) (Continuous Hrs.)	Minimum Discharge Pieces Per Hour	Minimum Loaded Pieces Per hour
Fast Sealift Ships (FFS) (using shipboard crane & RORO)	240 TEU slots 800 LOLO	203,000 ft ² <i>131,950 ft²</i>	34hrs. (D) 48 hrs. (L)	30 pieces per hour	25 pieces per hour
FSS (using port crane & RORO)	240 TEU slots 800 RORO	203,000 ft ² <i>131,950 ft²</i>	28 hrs. (D) 32 hrs. (L)	36 pieces per hour	32 pieces per hour

LMSR (NON-PREPO), (RORO& LOLO)	518 TEU slots 1000 RORO	321,831 ft ² 209,190 ft²	48 hrs. (D) 63 hrs. (L)	31 pieces per hour	24 pieces per hour
RORO (car carrier)	200 TEU 600 RORO	301,783 ft ² 196,158 ft²	23 hrs. (D) 24 hrs. (L)	34 pieces per hour	32 pieces per hour
Container Ship (using port crane)	1521 TEU slots	243,360 ft ² 158,184 ft²	48 hrs. (D) 48 hrs. (L)	32 pieces per hour	32 pieces per hour
MPS/CAPE (LOLO – RORO)	562 TEU slots 400 RORO	190,738 ft ² 123,987 ft²	42 hrs. (D) 48 hrs. (L)	24 pieces per hour	20 pieces per hour

TABLE 4
See Below

<i>Desired Outcome</i>	<i>PWS SECTION</i>	<i>Performance Threshold (metric)</i>	<i>Source of Data</i>	<i>How Often Collected</i>	<i>Calculation</i>
SECURE OPERATIONS	2/6	NO MORE THAN ONE (1) SECURITY VIOLATION PER YEAR	INCIDENT REPORTED	EACH MISSION	# OF SECURITY INCIDENTS PER YEAR
TIMELY CYBER INCIDENT REPORTING	2	NO MORE THAN ONE (1) LATE CYBER-INCIDENT REPORT OR UNREPORTED CYBER-INCIDENT IN A 12 MONTH PERIOD	SUBMITTED (OR DISCOVERED) CYBER-INCIDENT REPORTS	AS REQUIRED	# OF REPORTS OR UNREPORTED CYBER-INCIDENTS PER YEAR
SAFE OPERATIONS	3	NO MORE THAN ONE (1) SAFETY OR REGULATORY NON-COMPLIANCE INCIDENT PER YEAR AND NO INCIDENTS THAT RESULT IN SERIOUS INJURY OR DEATH	INCIDENT REPORTED	EACH MISSION	# OF SAFETY OR REGULATORY INCIDENTS PER YEAR
TIMELY TASK ORDER RECONCILIATION AND INVOICING	4	NO MORE THAN TWO (2) INSTANCES OF LATE RECONCILED TASK ORDERS OR INVOICING PER YEAR	SUBMITTAL OF SUPPORTING RECONCILIATION DOCUMENTS AND INVOICES	EACH MISSION	# OF LATE RECONCILIATION OR INVOICE SUBMISSIONS PER YEAR
TIMELY REPORTING	4	NO MORE THAN TWO (2) LATE REPORTS PER YEAR	SUBMITTED TIME LOGS, TIMESHEETS, REPORTS	AS REQUIRED	# OF LATE OR NOT SUBMITTED REPORTS PER YEAR

TIMELY OPERATIONS (VESSEL, TRUCKS, AND RAIL)	5	OPERATIONS ARE EXECUTED ACCORDING TO START AND COMPLETION DATES/TIMES AGREED TO AT PLANNING MEETING WITH NO MORE THAN ONE (1) LATE START AND ONE (1) LATE COMPLETION PER YEAR	INCIDENT REPORTED	EACH MISSION	# OF LATE MISSION STARTS AND/OR COMPLETIONS PER YEAR
ENVIRONMENTAL SPILLS	5	NO MORE THAN ONE (1) INCIDENT RESULTING IN ENVIRONMENTAL SPILLS PER YEAR	INCIDENT REPORTED	AS REQUIRED	# OF INCIDENTS RESULTING IN ENVIRONMENTAL SPILLS PER YEAR
CARGO FREE FROM DAMAGE, LOSS, OR PILFERAGE	6	NO MORE THAN TWO (2) INSTANCES OF DAMAGED, LOST, OR PILFERAGE CARGO PER YEAR	INCIDENT REPORTED	EACH MISSION	# OF INSTANCES OF DAMAGED, LOST, OR PILFERAGE CARGO PER YEAR

APPENDIX A – Regulations, Publications, and For Code of Federal Regulations

Code of Federal Regulations, 29 CFR, Labor, Part 1917, Marine Terminals
Code of Federal Regulations, 29 CFR, Labor, Part 1918, Safety and Health Regulation for Longshoring
Code of Federal Regulations, 40 CFR, Protection of Environment
Code of Federal Regulations, 46 CFR, Shipping, Part 146
Code of Federal Regulations, 49 CFR, Transportation, Parts 100-185

Federal Acquisition Regulation (FAR), Volume I, Parts 1 to 51
Federal Acquisition Regulation (FAR), Volume II, Parts 52, 53, & Index
Defense Federal Acquisition Regulation Supplement (DFARS)
Army Federal Acquisition Regulation Supplement (AFARS)

Department of Defense Directives

DoD 2000.12, DOD Antiterrorism (AT) Program
DoD 2000.16, DOD Antiterrorism (AT) Standards
DoD Manual (DODM) 4140.01 Vol 1, DoD Supply Chain Material Management Procedures: Operational Requirements
DODM 4140.01-M-1, Compliance for Defense Packaging: Phytosanitary Requirements for Wood Packaging Material (WPM)
DODM 4140-65, Issue, Use, and Disposal of Wood Packaging Material (WPM)
DODM 4145.26-M, DOD Contractor's Safety Requirements for Ammunition and Explosives
DODM 4160.21-M, Defense Material Disposition Manual
DTR 4500.9-R, "Defense Transportation Regulation"
Part II – Cargo Movement
Part III – Mobility
Part V – DoD Customs & Border Clearance Policies & Procedures
Part VI – Management & Control of Intermodal Containers & Systems 463L Pallets
DoD Directive (DODD) 4500.09E, Transportation and Traffic Management
DoD Instruction (DODI) 4500.57, Transportation and Traffic Management

DODI 5100.76, Safeguarding Conventional Arms, Ammunitions and Explosives (AA+E)
 DODM 5100.76-M, Physical Security of Sensitive Conventional Arms, Ammunition and Explosives
 DODM 5200.1, Vol 1-3, DoD Information Security Program: Overview, Classification, and Declassification
 DODI 5200.2, DoD Personnel Security Program
 DOD 5200.08-R, DoD Physical Security Program
 DoD 5205.02-M, (DOD Operations Security (OPSEC) Program Manual
 DODM 5220.22-M, Vol 2 (National Industrial Security Program: Industrial Security Procedures for USG Activities)
 DODI 6050.05, DoD Hazard Communications (HAZCOM) Program
 DODM 6050.5-M, Hazardous Materials Information System.
 DODI 6055.04, DoD Traffic Safety Program
 DODI 6055.09- STD Ammunition and Explosives Safety Standards
 DODI 6055.9E, STD Explosives Safety Management and DOD Explosives Safety Board

 USTCINST 10-14, United States Transportation Command (USTRANSCOM) Lessons Learned Program (TC-LLP) and After-Action Reporting (TC-AAR) System, *provided upon request*
 USTCINST 63-2, United States Transportation Command (USTRANSCOM) Acquisition Program, *provided upon request*
 USTCINST 63-4, Continuation of Essential United States Transportation Command (USTRANSCOM) Contractor Services during Crisis Situations, *provided upon request*
 USTCINST 63-5, Contracting Officer's Representative Program, *provided upon request*

Armed Services Regulations

Army Regulation (AR) 5-20, Competitive Sourcing Program
 AR 25-2, Army Cybersecurity formerly known as Information Assurance
 AR 56-4, Distribution of Materiel and Distribution Platform Management
 AR 190-5, Motor Vehicle Traffic Supervision
 AR 190-11, Physical Security of Arms, Ammunition, and Explosives
 AR 190-13, The Army Physical Security Program
 AR 190-45, Law Enforcement Reporting
 AR 190-51, Security of Unclassified Army Property (Sensitive and Non-sensitive)
 AR 200-1, Environmental Protection and Enhancement
 AR 340-21, The Army Privacy Program
 AR 380-5, Department of the Army Information Security Program
 AR 380-20, Restricted Areas
 AR 380-49, Industrial Security Program
 AR 380-67, Personal Security Program
 AR 381-12, Threat Awareness and Reporting Program
 AR 385-10, The Army Safety Program
 AR 420-1, Army Facilities Management
 AR 525-13, Anti-terrorism
 AR 525-93, Army Deployment and Redeployment
 AR 530-1, Operations Security (OPSEC)
 AR 600-55, The Army Driver and Operator Standardization Program (Selection, Training, Testing, and Licensing)
 AR 700-141, Hazardous Material Information Resource System
 AR 750-1, Army Material Maintenance Policy
 AR 735-5, Policies and Procedures for Property Accountability

 DA Pamphlet (PAM) 385-10, The Army Safety Program
 DA PAM 385-30, Mishap Risk Management
 DA PAM 385-40, Army Accident Investigations and Reporting

DA PAM 385-64, Ammunition and Explosive Safety Standards
DA PAM 385-65, Explosive and Chemical Site Plan Development and Submission
DA PAM 700-32, Packaging of Army Material
DA PAM 710-2-1, Using Unit Supply System
DA PAM 710-7, Hazardous Material Management Program

ARTRANS Regulation (SDDCR) 56-69, Terminal Operations
ARTRANS Regulation 190-13 (ARTRANS Physical Security Program), *provided upon request*
ARTRANSR 350-3, Military Traffic Management Command Remedial Action Project Program
ARTRANSR 380-2, SDDC Operations Security (OPSEC) Program, *provided upon request*
ARTRANS Regulation 380-5, SDDC Information Security Program, *provided upon request*
ARTRANS Regulation 530-1, SDDC Operations Security Program, *provided upon request*

Joint Publications (JP)

JP 3-11, Operations in Chemical, Biological, Radiological, and Nuclear (CBRN) Environments
JP 3-35, Deployment and Redeployment Operations
JP 4-01, Joint Doctrine for the Defense Transportation System
JP 4-01.2, Sealift Support to Joint Operations
JP 4-01.5, Joint Terminal Operations
JP 4-09, Distribution Operations
JP 4-10, Operational Contract Support

Army Techniques Publications (ATP)/Army Tactics, Techniques and Procedures (ATTP)

ATP 3-34.5, Environmental Considerations
ATP 3-35, Army Deployment and Redeployment
ATP 3-39.32, Physical Security
ATP 4-10, Multi-Service Tactics, Techniques, and Procedures for Operational Contract Support
ATP 4-11, Army Motor Transport Operations
ATP 4-12, Army Container Operations
ATP 4-13, Army Expeditionary Intermodal Operations
ATP 4-14, Expeditionary Railway Center Operations
ATP 4-15, Army Watercraft Operations
ATP 5-19, Risk Management

International Maritime Organization (IMO) Dangerous Goods Code (IMDGC) Regulation, current edition
International Plant Protection Convention (IPPC), Revision of ISM No. 15, International Standards of Phytosanitary Measures: Regulation of Wood Packaging Material in International Trade (2009), April 2013 Revision
NFPA 30, National Fire Protection Association - Flammable and Combustible Liquids Code.
N IST Special Publication 800-61, Computer Security Incident Handling Guide (current version)
USDA Protocol for Military Clearance

FC 55-50, Fast Sealift Ship User's Manual.

MIL-HDBK-138B, Container Inspection
MIL-STD-129R, Military Marking for Shipment and Storage
MIL-STD 209K, Interface Standard for Lifting and Tiedown Provisions
MIL-STD 1320D, Department of Defense Standard Practice: For Designing Unit Loads, Truckloads, Railcar Loads, and Intermodal Loads for Ammunition and Explosives

TB-43-0142, Safety Inspection and Testing of Lifting Devices
TB 55-46-1, Standard Characteristics for Transportability of Military Vehicles and Other
Outsize/Overweight Equipment
TC 4-13, Cargo Specialist's Handbook

TM 3-11.42 Installation Emergency Management
TM 38-410, Storage and Handling of Hazardous Materials
TM 55-607, Loading and Stowage of Military Ammunition and Explosives aboard Break-bulk
Merchant Ships
TM 55-2200-001-12, Transportability Guidance for Application of Blocking, Bracing and
Tiedown Materials for Rail Transport
TM 55-2200-002-12, Transportability Guidance: General Rules and Suggested Procedures for
Loading and Security Military Cargo in Closed Railcars
TM-55-2220-058-14, Transportability Guidance Transport of Cargo on the Railcar, Flat, 140-Ton-
Capacity
TM 700-143, Packaging of Hazardous Material

JOCOTAS, Department of Defense Standard Family of Tactical Shelters (Rigid/Soft/Hybrid,
Update 17

USPACOMINST 0601.6, Pacific Theater Logistics In-Transit Visibility (ITV) Automated
Information System (AIS), and Automatic Identification Technology (AIT) Policy

ARTRANS NBC Defense Plan
ARTRANS-TEA Modal Instructions (MI) -19, Tiedown Handbook for Rail Movements
ARTRANS-TEA MI -20, Tiedown Handbook for Truck Movements
ARTRANS-TEA MI -21, Lifting and Tiedown Handbook for Helicopter Movements
ARTRANS-TEA MI -22, Lashing Handbook for Marine Movements
ARTRANS-TEA MI -22, Lifting Handbook for Marine Movements
ARTRANS-TEA MI -23, Tiedown Handbook for Containerized Movements
ARTRANS-TEA MI -24, Vehicle and Equipment Preparation Handbook for Fixed Wing Air
Movements
ARTRANSTEAM MI -5, Deployment Planning Guide
ARTRANSTEAM MI -4 Vessel Characteristics for Ship loading
ARTRANSTEAM MI -6, LMSR User's Manual
ARTRANSTEAM MI -7, Fast Sealift Ship User's Manual Forms

Forms

DD Form 250, Material Inspection and Receiving Report
DD Form 361, Transportation Discrepancy Report
DD Form 577, Appointment/Termination Record – Authorized Signature
DD Form 626, Motor Vehicle Inspection
DD Form 1384, Transportation Control and Movement Document (TCMD)
DD Form 1387, Military Shipment Label
DD Form 1387-2, Special Handling Data
DD Form 1662, DoD Property in the Custody of Contractors
DD Form 1750, Packing List
DD Form 1907, Signature and Tally Record
DD Form 2271, Decontamination Tag
DD Form 2776, Dangerous Cargo Load List
DD Form 2781, Container Packing Certificate or Vehicle Packing Declaration
DD Form 2890, DOD Multimodal Dangerous Goods Declaration
DD Form 2977, Deliberate Risk Management Worksheet
DA Form 285, Technical Report of a U.S. Army Ground Accident (AR 385-40)
DA Form 348, Equipment Operator's Qualification Record (Except Aircraft)

DA Form 2062, Hand Receipt
DA Form 2404, Equipment Inspection and Maintenance Worksheet
DA Form 3161, Request for Issue or Turn-In
DA Form 5473, Performance Requirements Summary
DA Form 5475, COR/QAE Surveillance Schedule
DA Form 5476, Surveillance Activity Checklist
DA Form 5477, Customer Complaint Record
DA Form 5478, Decision Table
DA Form 5479-R, Contract Discrepancy Report
DA Form 5481, Tally Checklist
SD Form 288, Stevedoring Activity Log Sheet
SD Form 290, Service Authorization

Cybersecurity References

Executive Order (E.O.) 13691 of February 13, 2015, Promoting Private Sector Cybersecurity Information Sharing

NIST Special Publication 800-61 Computer Security Incident Handling Guide Revision 2 (2021)
USTRANSCOM Instruction 31-02 Security Classification Guide (2018)

APPENDIX B - Glossary of Terms

20 EXPLOSIVES CARGO PALLETIZED, UNITIZED OR SINGLE BOXES OR CRATES
LO/LO – RO/RO BY PORT CRANE OR BY CFE TRUCK/TRAILER, FORKLIFT, BY RAMP

25 MILVAN-(ISO) CONTAINER PACKED W/ EXPLOSIVES

25a LO/LO - PORT CRANE (QUAR, GANTRY, PEDESTAL, CRANE) OR SHIPS CRANE

40 General Cargo or Cargo Not Otherwise Specified, includes pallets, wood or metal creates, and skids,
Non-ISO fitted containers, ISU 90/60, M7-FRS, BOH shelters, Military style (bundle, each or loaded without ISO fittings and with or without forklift pockets), tank rollers,

40a LO/LO - PORT CRANE (QUAR, GANTRY, PEDESTAL, CRANE) OR SHIPS CRANE

44 Cargo transporters (CONEX) non-explosive, loaded/empty ISO Fitted containers, -
INCLUDE QUADCONS, BICONS, TRICONS, stackable tank modules, SINGLE OR LESS
THAN TEU

44a LO/LO - PORT CRANE (QUAR, GANTRY, PEDESTAL, CRANE) OR SHIPS CRANE

45 CONTAINERS – MILVANS – SEAVANS - all ISO corner fitted type boxes, tanks
with/without forklift pockets, all commercial style Flat-racks (bundle, each or loaded with ISO
fittings or with or without forklift pockets) This excludes ISO corner fitted items less than 4' Long.
All items above are either empty or loaded.

45a LO/LO - PORT CRANE (QUAR, GANTRY, PEDESTAL, CRANE) OR SHIPS CRANE

Schedule of Rates (SOR)

SCHEDULE - 1A1	LOAD VESSEL
SCHEDULE - 1A2	DISCHARGE VESSEL
SCHEDULE - 1B1	LOAD RAIL
SCHEDULE - 1B2	DISCHARGE RAIL
SCHEDULE - 1B3	LOAD TRUCKS
SCHEDULE - 1B4	DISCHARGE TRUCKS
SCHEDULE - 1C	RECEPTION ONLY
SCHEDULE - 1D	DISPOSITION ONLY
SCHEDULE - 2	EXTRA LABOR
SCHEDULE - 3A	DETENTION
SCHEDULE - 3B	OVERTIME DIFFERENTIALS
SCHEDULE - 3C	GUARANTEED TIME
SCHEDULE - 4	EQUIPMENT RENTAL (EQR)
SCHEDULE - 6	FACILITIES
SCHEDULE - 7	MISCELLANEOUS LUMBER / DUNNAGE / MATERIALS
SCHEDULE - 8	MISCELLANEOUS / OOP

Aged Cargo Report - Cargo data printout showing time-in-terminal of shipments on-hand.

Agents - Includes Subcontractors or other persons engaged by Contractor to perform work or service under this contract.

Astray Freight - Shipments or portions of shipments found in carriers' possession or delivered to a USG installation for which billing (waybill, freight bill, etc.) is not available.

Barge - Floating craft of full body and heavy construction, designed to carry cargo.

Best Commercial Practices. Refers to the methods, processes, procedures, systems, and/or usage commonly implemented in the business world and is the generally agreed to have produced the most satisfactory or desirable results on a consistent basis.

Block - Metal or wooden frame or shell containing one or more pulleys or sheaves, generally set side by side and turning freely on the same pin.

Blocking - Placing timbers or blocks next to the sides and ends of vehicles, heavy lifts, and other cargo to prevent horizontal movement. Blocking must be braced to be effective.

Booking - Reservation of ocean transportation space on a vessel.

Bracing - Strengthening an item by supporting it in a horizontal direction.

Break-bulk Cargo - Packaged products that can be unitized into larger parcels and assembled together, for example, on pallet boards bound by wire, straps, or gathered up in rope cargo slings or net as a means of lifting on and off a vessel.

Broken Stowage - Lost or unfilled space in a vessel's hold.

Cargo - Material moving within the Defense Transportation System (DTS).

Cargo Assembly Area – Assembly Area for nesting, hooking cargo into or on other cargo for this contract is any location within port/s.

Cargo Documentation – Act of documenting movement of Department of Defense sponsored export and import cargo through cargo assembly areas under the control of ARTRANS. Cargo documentation is required for initial cargo receipt (from vessel, truck, railcar, lighter, etc.), upon transfer of cargo from one staging area to another, and/or for cargo loaded on to a vessel, truck, railcar, lighter, etc. Cargo documentation services will be conducted utilizing the GATES OR SYSTEM OF RECORD, System automated cargo documentation system with equipment provided by the USG, as well as manual tally sheets.

Checking or Clerking - Act of counting, checking & tallying cargo against appropriate documents, and documenting the progression of cargo movement from reception to disposition.

Chock - Deck fitting through which mooring lines are passed; to block cargo in stow with dunnage.

Class – Means hazard class, an international system of hazard classification used by DoD; of the nine hazard classes; two (Classes 1 & 6) contain most ammunition and explosive items.

Classified - Official information or matter in any form or of any nature that requires protection in the interest of national security.

Classified Shipment - Official information or matter in any form, or any nature that requires protection in the interest of national security.

Common-User Ocean Terminals - A Military installation, part of a Military installation, or a commercial facility operated under a contract or arrangement of the Military Surface Deployment and Distribution Command (ARTRANS), which regularly provides for two or more shipper services terminal functions of receipt, transit storage or staging, processing, loading, and unloading of cargo ships.

Coaming - a raised border around the cockpit or hatch of a yacht or other boat to keep out water.

Compatibility Group – A designated alphabetical letter used to categorize different types of explosive substances and articles for purposes of stowage and segregation. See paragraph 2.1.2.1, IMDG and §171.8, CFR49, *Compatibility Group Letter*; §173.52 including Table 1, CFR49.

Consignee - Person or company that merchandise, or cargo is shipped to.

Consignor - Person or company that ships merchandise or cargo to consignee.

Container – A reusable container (Empty and full) – all International Organization for Standardization (ISO) freight containers and/or USG-owned containers. This includes all 20ft/40ft container, MILVANS, BICON's, TRICON's, QUADON's, and ISO standard containers.

Container Chassis – 5th wheel type Trailer designed to carry and transport containers.

Container Handler – Forklift, Wretch, Reach Stacker, or other similar device used to handle, stack and transfer containers.

Contingency Operations - Military operations either designated by the Secretary of Defense as a contingency operation or becomes a contingency operation as a matter of law (Title 10, United States Code, Section 101[a] [13])

Contracting Officer (CO) - Person executing a contract on behalf of the USG, and any other Military or civilian employee properly designated as Contracting Officer. The term includes the authorized representative of Contracting Officer acting within the limits of his/her authority.

Contract Officer Representative - Contracting Officer's Representative (COR) A Contracting officer's representative is an individual designated IAW DFARS subsection 201.602-2 and authorized in writing by the contracting officer to perform specific technical or administrative functions.

Contractor Furnished Equipment – Equipment provided by Contractor to conduct work.

Controlled Cargo - Items which require additional control and security as prescribed in various regulations and statutes. Controlled items include money, negotiable instruments, narcotics, registered mail, precious metal alloys, ethyl alcohol, and drug abuse items.

Convoy – Convoy refers to a group of Military vehicles, typically motor vehicles traveling together for mutual support and protection. Often, a convoy is organized and arriving at their destination in a well-ordered unit with intact command structure.

Coopering - Act of making or repairing shipping pallets, boxes, or other shipping containers and reloading with cargo.

Cross Docking - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Critical - affecting mission success or failure

Cube - Space occupied by the measurements of length multiplied by width multiplied by height.

Day – Day; defined as day, days, or calendar day; the USG operates 24hrs per day, 7 days per week and 365 calendar days per year.

Defect - an error in executing a requirement, resulting in additional effort and/or cost(s).

Delivery Receipt - Document that shows proof of the physical and legal transfer of a shipment from consignor to carrier, between carriers, and from carrier to consignee.

Demurrage - Charge made on conveyances (normally line-haul) held by or for a consignor or consignee beyond allowable free time for loading or unloading, for forwarding directions, or for any other purpose.

Detention - Defined as time lost due to work stoppage or interruption of work during commodity or ordered Extra Labor operation(s).

Detention Time - Detention time used to compensate the Contractor for work stoppage during commodity or extra labor operations. Causes include, but are not limited to, changes in vessel, truck or rail operational plan (i.e. change to staging, stow plans); breakdown of ship's gear, inclement weather, or non-arrival events). Contractor must make effort to continue working where work is available to include shifting labor.

Discharge - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Disposition - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Division – Numerical designator within Hazard Class - Division explosive coding that indicates the character and predominance of associated hazards and potential for causing personnel casualties and property damage.

Documenting - Preparing or annotating data, documenting evidence to effect receipt, disposition cargo shipments, or prove ownership of goods.

Deck load - Cargo stowed on the deck of a vessel to include the weather deck.

Direct Labor - All labor categories provided for in the man-hour rate schedule of the order.

Draft, Vessel - Depth of a vessel below the waterline, measured vertically to the lowest part of the hull, the bottom of the keel, propellers, or other reference points.

Drayage - Is the transport of cargo over a short distance, often as part of a longer overall move and is typically completed in a single work shift.

Dunnage - Cordwood, planks, or other material used solely to protect goods stowed on a vessel.

Equipment Rental - Equipment Rental (EQR) is defined as MHE provided by the stevedoring Contractor or equipment supplied (rented) through an outside vendor/s. Equipment used in/as part of extra labor work shall be inclusive of its operator, fuel, lubricants, slings, accessories, and regular maintenance. EQR also includes mobilization and demobilization costs unless otherwise indicated and approved by the USG.

Extra Labor – In terms of labor, extra labor categorized as miscellaneous work provided over normal commodity rates within the scope and intent of this contract. Extra labor used to augment commodity-based operations or extra labor hired to perform within the scope of the operations that are not covered under commodity rates.

Explosive Arc – Circular distance from an explosive item that gives an increased certainty of limiting damages should the explosive detonate.

Flat rack (Platform Container) - Container with four ISO corner fittings without waterproof sides or top. Includes platforms that have no sides or ends, and flat racks with rigid or collapsible ends.

Force Protection - Actions taken to prevent or mitigate hostile actions against personnel, resources, facilities, and critical information.

Force Protection Condition - A DOD system standardizing identification of and recommended preventive actions and responses to terrorist threats against U.S. personnel and facilities. The FPCON system is the principal means for a commander to apply an operational decision on how to protect against terrorism and facilitates coordination among DOD Components and support for antiterrorism activities.

Free time - Amount of time allowed by a carrier or terminal to load, unload, stag cargo, or provide disposition instructions, before demurrage or detention charges accrue.

Frustrated Cargo - Cargo incorrectly marked or documented; requires maintenance; is being diverted; or for some other reason requires action before it can be shipped.

General Cargo - Cargo other than household goods, hazardous materials, and vehicles.

USG Furnished Equipment - Equipment, facilities, and supplies furnished by the USG for the Contractor use during performance of this contract

Hatch - Opening in a deck, which gives access to a cargo hold.

Hatch Cover – The Cover on top of an opening in the deck of a vessel, fitted into recesses in the coming and resting on the beams.

Hazardous and/or Dangerous Material – A material that the U.S. Secretary of Transportation has determined is capable of posing an unreasonable risk to health, safety, and property when transported in commerce, and has designated as hazardous under section 5103 of Federal hazardous materials transportation law (49U.S.C. 5103). Term includes hazardous substances, hazardous wastes, marine pollutants, elevated temperature materials, materials designated as hazardous in the Hazardous Materials Table (see 49 CFR §172.101) and materials that meet defining criteria of hazard classes and divisions in part 173 of subchapter C of this chapter.

Heavy Lift Equipment - Material Handling Equipment (MHE), shore side crane, floating crane, or mobile crane capable of lifting in excess of 70 long tons (157,500 pounds).

Hold - Space below decks used for stowing cargo. More specifically, a space between the lowest deck and the bottom of the ship or tank tops.

Inclement Weather - is characterized as extremely rough, rainy, and sufficiently severe to significantly interfere with safe operations. The COR will make the determination if inclement weather conditions exist and instruct the Contractor to stop work and thereby placing the Contractor in detention

Integrated Booking System (IBS) - Provides a single, worldwide, automated booking system to support peacetime and wartime movement of unit and sustainment cargo, in an efficient and timely manner. IBS also supports ARTRANS business practices by automating the booking process between DOD shippers and ocean carriers.

Integrated Computerized Deployment System (ICODES) - A computer based automated decision support system for developing ship stow plans.

Inland Cargo Conveyance - As used herein means truck, barge, railcar or lighter, except ocean-going ships.

Intra Port Transfer - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

ISO Shelter - Cargo transporter modified or converted for use as a communications shelter, tool or maintenance kit, unit support van, or mobile command post, etc. See JOCOTAS Update 17 @ <http://nsrdec.natick.army.mil/media/print/jocotas.pdf> for more information.

Lashing - Rope, cord, chain, or straps with hooks or the like fastening made by passing around an object or objects to prevent movement in a direction horizontal to the decks.

Lashing and Unlashing - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Lighter - Barge or flat-bottom vessel used to carry cargo from one point to another in a harbor, usually decked over, either roofed or unroofed, and usually not self-propelled.

Lightering - Act of transporting cargoes from ship to shore via a lighter vessel.

Loading - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Loading Plan - Stowage diagram of cargo in a vessel (see ICODES above).

Long Ton - Sometimes referred to as “weight ton”, “long ton”, or “LT”, means a weight of 2,240 pounds.

Longshoreman – A person employed on the wharves of a seaport, to load and unload ships. Usually applied to person employed in handling of cargo in vessels when loading or unloading ships.

Loss - Act of losing or failing to maintain possession of an item.

MAFI - Low-profile RO/RO trailer 20/40/60 feet in length with or without a probe for handling break-bulk, outsized or dead-lined cargo on and/or off a vessel.

Marking - Numbers, nomenclature, or symbols placed on items or containers for identification during handling, transport, or storage. See MIL-STD 129R and MIL-HDBK 138B.

Materiel-Handling Equipment - Mechanical devices for handling of cargo and other items with greater ease and economy, e.g., a forklift.

Measurement Ton (MTON) - A volume of 40 cubic feet, frequently abbreviated as "MTON". Calculated by multiplying the dimensions of an object, (length x width x height divided by 1728 divided by 40 equal MTON).

Metric Ton (MT) – 1,000 kilograms (2,406.8 lbs. avoirdupois)

Military Surface Deployment and Distribution Command (ARTRANS) - Single Port Manager operating agency for Military traffic, land transportation, and common user ocean terminals. Army component of United States Transportation Command (USTRANSCOM).

Minimum Time - Time is defined as the maximum amount of compensation (by the hour) during a commodity operation the Contractor will receive in addition to the commodity rates of time actually worked after all commodity work is completed for which the Contractor is required to pay their employees to comply with minimum work guarantees require for applicable Collective Bargaining Agreements (CBA).

Minor Repairs and Markings - Nailing, patching, caulking, banding, replacing, or tightening bolts, taping, re-labeling, obliterating/removing existing markings, stenciling, or otherwise marking/remarking shipping containers.

Miss-Shipment - Mis-shipped cargo is defined as the wrong cargo loaded on the correct conveyance for the correct destination.

Nested Cargo - Cargo that fits or stacks on the back of other cargo, on or in itself, conserving space, such as generator in the bed of a truck; or cargo loaded inside vehicles, such as cargo loaded by shippers. Nested cargo will usually be documented and have its own TCN label.

Net Explosive Weight (NEW) – Amount of explosive component contained in (pounds/kilograms) an ammunition or ammunition shipment unit.

Ocean Cargo Clearance Authority (OCCA) - ARTRANS clearance authority responsible for shipments moving by sea in the DTS. In OCONUS areas OCCA is designated by area and/or sponsoring Service by the theater CDR IAW theater directives in coordination with ARTRANS.

Ordering Officer – A service member or Department of Defense civilian, who is appointed in writing and trained by a contracting officer and authorized to execute micro-purchases in support of S&RTS and/or designated civil-military operations.

Operational Security (OPSEC) - A process of identifying critical information and subsequently analyzing friendly actions attendant to Military operations and other activities to:

- a. Identify those actions observable by adversary intelligence systems.
- b. Determine indicators that hostile intelligence systems might obtain for interpretation or pieced together to derive critical information in time useful to adversaries.

c. Select and execute measures that eliminate or reduce to an acceptable level vulnerability of friendly actions to adversary exploitation.

Out-of-Pocket Costs (OOP) – Expenses paid out-of-pocket by the Contractor for which the USG will reimburse the Contractor (Vendor invoice/receipts required), with prior written approval of the CO/COR.

Overage - Inventory discrepancy in which a shipment of more pieces of cargo for a shipment, are on hand than the Terminal Inventory indicates, or a shipment of more pieces of cargo are received than accounted for in the shipping papers.

Over Time - Defined as the hours worked after normal workday, regardless of shift. Example, if normal hours of operation are 0800 to 1700 hours, Monday through Friday, when operational requirements dictates that labor work past normal workday, hours worked after the work day may include overtime.

Performance Requirements Summary (PRS) - Listing of critical performance indicators, standards, and acceptable quality levels used in evaluating Contractor's performance.

Perimeter Fence - Fences for the security of unclassified, non-sensitive items that meet the requirements of USACE STD design drawing code 872–90–00 series. The minimum height will be 6 feet with or without an outrigger. Use of NATO standard design fencing is also authorized.

Perimeter Wall - Any wall over 6 feet tall which delineates a boundary and serves as a barrier to personnel and/or vehicles. These walls may be constructed of reinforced concrete, masonry, or stone.

Physical Security - Physical measures designed to safeguard personnel, property, and operations; to prevent unauthorized access to equipment, facilities, materiel, and information; and to protect against espionage, terrorism, sabotage, damage, misuse, and theft.

Pier - Wharf running at an angle with the shoreline that provides berthing spaces on both sides for ships.

Pilferable Cargo - Items vulnerable to theft because of their ready resale potential. Pilferable items include Military gear, mechanics tools, spare tires, and other equipment, etc.

Place of Rest – See final place of rest

Port Clearance – Cargo movement from an ARTRANS terminal to its final destination via commercial truck, Military line-haul conveyance, rail service, or Military convoy.

Portable Bar Code Reader (PBCR) - Portable equipment used to automatically read LOGMARS and Military Shipping labels.

Port Support Activity (PSA) - Army Commands and ARTRANS, has designated from Area Support Installations. Will provide logistical support, driving vehicles, correcting deficiencies, towing equipment and other support activities at SPOD's and APOD's.

Pre-Lodge - Feature of the Defense Transportation System (DTS) whereby a transshipping activity is provided advance cargo documentation from within the system and carriers are required to give notification of cargo arrival for scheduling purposes.

Pre-stow or Stow plan - Completed stowage diagram (see ICODES) showing material loaded and its stowage location in each hold, between-deck compartment, or other space in a ship, including deck space. Each POD is indicated by colors or other appropriate means. Deck and between-deck cargo normally is shown in perspective, while cargo stowed in lower holds is shown in profile, except that vehicles usually are shown in perspective regardless of stowage.

Protected Cargo - Those items designated with characteristics that require identification, accountability, security, segregation, or handled in a special manner to ensure their security or integrity. Protected cargo is subdivided into controlled, pilferable and sensitive cargo.

Quality Control Inspection Plan - A formal document prepared by Contractor that contains specific performance standards, methods, and inspection frequency, assignment of responsibility, and manner of record preservation to support the Quality Control Inspection Program.

Quality Control Inspection Program - Formal internal control program prepared by Contractor to ensure consistent satisfactory performance of contract terms and conditions.

Receipt - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Release Unit of Cargo - Release cargo unit for surface shipment is usually 10,000 pounds; however, this is subject to exception based upon traffic management considerations, cargo nature and sensitivity, and shipments modes and methods.

Required Delivery Date (RDD) - Calendar date when materiel must arrive at consignee location.

Retrograde - Process for equipment and materiel movement from a forward location to a reset (replenishment, repair, or recapitalization) program; to another directed area of operations to replenish unit stocks, satisfy stock requirements; or ready for deployment somewhere else.

Secondary Load - Cargo loaded on prime mover by original shipper or terminal operator. Any weight and dimension changes are allocated to the prime mover in the shipper's documentation. Also, unit equipment, supplies, and major end items that are transported in the truck or trailer beds of the organic vehicles. See Nested Cargo above.

Segregation – Process of separating two or more substances or articles considered mutually incompatible when their packing or stowage together may result in undue hazards in case of leakage or spillage, or any other accident (IMDGC, paragraph 7.2.2.1). Whenever hazardous materials are stowed together, whether or not in a cargo transport unit, segregation of such hazardous materials from others must always be IAW the most restrictive requirements for any of the hazardous materials concerned (CFR49, §176.83(a)(5)).

Segregation (Sorting) of Cargo - Breaking out of discharge cargo and separating or assembling it into piles, bays, bins, or areas, by consignee as shown on the manifests or other documents, or for loading on transportation conveyance.

Service Codes - DTR codes indicating ocean carrier's responsibility for container movement. These codes are used in pairs to indicate carrier's responsibility at origin and destination. For example, service code ML indicates carrier is responsible for line haul transportation from origin to port of embarkation and for local drayage within the modified commercial zone of port of discharge.

- Code "K" - Ocean carrier responsibility begins or ends at the ocean carrier's terminal.
- Code "L" - Ocean carrier's responsibility begins or ends within modified commercial zone of port of embarkation (SPOE) or port of discharge (SPOD).
- Code "M" - Ocean carrier's responsibility begins or ends at an inland origin or inland destination.

Shipment Unit - One or more items assembled into one unit which becomes the basic entity for control throughout the transportation cycle as defined in the DTR.

Shipside - Area at or along the side of a ship.

Shortage - Inventory discrepancy when a shipment is not on hand, or fewer pieces of cargo for a shipment are on hand, than the terminal inventory indicates. Transportation discrepancies occur when an entire shipment of fewer pieces of a shipment are received than shown on shipping documents.

Single Shipment - A shipment under one shipping document (TCMD).

Sling - Arrangement of wire rope, chain or straps with hooks used to in lifting or hoisting cargo.

Special Handling Code - Two-digit alphanumeric code following the Water Commodity Code. This code identifies type of cargo and special handling, used to identify commodities for ocean manifesting, cost accounting, Contractor payment and special handling. The various codes are defined in the DTR, Part II, and Appendix KK.

Split Shipment - Shipment separated into two or more increments after receipt with each increment, identified and documented separately.

Staging Plan- Plan showing cargo staged based on numerous factors to include staging by destination or mode of clearance, POD, HAZMAT segregation, sensitive, frustrated and other identified special cargo packages.

Stevedore - Person or company that contracts with a port, ship owner, or charterer to load and unload a vessel. In some parts of the world, it may refer to a dockworker who just works aboard ship. See “longshoreman” above for a dockworker who works shore-side or pier-side only.

Stowage - Compact placing of cargo aboard a vessel.

Stowage Factor - Figure denoting number of cubic feet required to stow a long ton of any particular commodity.

Staging – See section 5.19, Staging.

Stripping – See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Stuffing - See Table 1 – Section 4.6, Cargo Handling (service) Operations

Task Order – An issued number used to designate work request. Task order number will be generated when labor and equipment is ordered against a contract.

Terminal Inventory Discrepancy (TID) - Shipment unit (SU) the terminal has listed on the on-hand inventory and cannot physically locate and for which no lift record or other disposition is available.

Terminal Operator - ARTRANS or commercial activity responsible for terminal operations.

Time in Terminal - Time measured in days from date of cargo receipt until the date cargo is shipped, transported, or otherwise disposed of.

Timekeeping – Is defined as a required means of documenting each operation, work task provided by the Contractor on an approved format, where the Contractor and the USG will reconcile daily work productivity. Tracking the usage extra labor, detention and equipment rental.

Transportation Control and Movement Document (TCMD) - DD Form 1384, official cargo movement document prescribed by the Defense Transportation Regulation (DTR 4500.9-R). TCMDs are used for documentation, accountability and control of all cargo moving into and through terminals.

Transportation Control Number - Number used to identify and control shipment unit within the Defense Transportation System.

Twenty-foot Equivalent Unit – 20’ container length ocean cargo container with ISO corner fittings.

Undocumented cargo - Any piece of equipment arriving at the terminal not listed on the final AUEL/UEL or in the data base.

Unitized Cargo - Cargo received, palletized or in a configuration comparable to a palletized load, does not require palletizing or reworking by Contractor prior to movement to the ship or loading on inland transportation, and is susceptible to machine handling in the ship.

Unstuffing - See Table 1 – Section 4.6, Cargo Handling (Service) Operations

Vehicle - A self-propelled, boosted, or towed conveyance for transporting a burden on land such as automobiles, trailers, trucks, motorcycles, scooters, and internal-combustion engines or battery-powered equipment (this includes all documentation and certification when required).

Vessel Stowage Factor (VSF) - Amount of space available for each long ton/measurement ton of cargo a vessel can carry, exclusive of deck cargo.

Water Commodity Code - Three-digit numeric code used to identify commodities for ocean manifesting, cost accounting, Contractor payment, special handling. The codes and their noun descriptions are defined in DTR, Part II, and Appendix KK.

Weight Ton (WT) – Same as Long Ton (LT) Unit of 2,240 pounds.

APPENDIX C -

Payment, Ordering, and Invoicing Instructions Payment Information

Payment Procedures

The USG will not compensate for services unless specifically enumerated in this agreement and provided for in the Schedule of Rates (SOR) in this contract.

Payment will be made using the Transportation Financial Management System (TFMS) in accordance with (IAW) the Invoicing Instructions below.

Ordering Instructions

The SOR applicable to this contract shall be converted to a Task Ordering (TO) template for use by the Ordering Officer (OO) to issue task orders against this contract. Specific services performed under task orders issued IAW the ordering clause of this contract shall be identified by the OO on the ordering template. The OO shall develop an order estimate identifying services to be performed prior to performance start date. The OO shall validate funding is available prior to obligating the order estimate. Following validation of funds, the order estimate shall be assigned a unique task order number by sending a signed estimate order to the ARTRANS Brigade Team organizational email box at usarmy.scott.sddc.mbx.g8-brigade-team@army.mil. The OO shall provide a written, signed copy of the obligated order estimate to the Contractor prior to performance. With limited exception for incidental or OOP expense services (e.g. port settlement charges, some Out-of-Pocket expenses), the Contractor is not authorized to begin performance of any service prior to receipt of a written, validated order estimate.

The COR/OO may identify incidental or OOP expense services verbally when necessitated by the operation. The Contractor shall confirm verbal orders in writing with the OO within 24 hours, or as soon as otherwise practicable. Individual charges against the Out-of-Pocket expense line item (see SOR/PWS) are not authorized for any amount exceeding \$3,500 without Contracting Officer (CO) approval. The COR is not authorized to obligate the USG for any Out-of-Pocket expenses exceeding \$3,500. The COR/OO shall be responsible for receiving CO approval prior to performance of any tasks charged against the Out-of-Pocket line item exceeding that threshold. The OO shall adjust and finalize TO accounting for actual commodities, man-hours and Misc. approved expense after completion of operation. The OO shall provide a Final TO template to the ARTRANS Brigade Team organizational email box at usarmy.scott.sddc.mbx.g8-brigade-team@army.mil. Once the acknowledged by G8, The OO shall provide a written copy of the final TO order to the Contractor for invoicing. G8 will not process any invoices dated earlier than the acknowledged receipt of the final TO from the OO. The Contractor shall submit a final invoice for payment, IAW with the invoicing instructions below, following receipt of the final order.

Invoicing Instructions

All invoices shall be rendered in English in the currency designated on the associated contract and shall be provided not later than 30 days after receipt of the final order. The Contractor shall provide all invoice documents for port handling charges along with associated substantiating documentation to the designated COR or ACOR for each port location. The COR shall then review the billing to ensure a proper invoice has been submitted, which is IAW the provisions set forth in the contract and accurately reflects services provided as documented in the designated substantiating documentation. Once the COR has completed their review, all valid invoice documents shall be certified and submitted to the USG entitlement activity for processing. NOTE: (invalid invoice documents shall also be returned to the Contractor for corrective action). Invoices will be either digitally or wet-signed by a duly appointed COR. Pictures of signatures are not authorized. The COR and ordering officer signatures will not be from the same person.

Invoice Certification Process

The Contracting Officer's Representative (COR) designated to support each port location shall certify all invoices for payment. The Contractor shall provide invoice substantiating documentation (Tally sheets, vendor receipts) to the OO to support the invoice certification process and for their retention purposes. The COR will complete the invoice certification process within seven (7) business days of receipt of the invoice from the Contractor. The COR will then upload invoices to Pipeline Asset Tool via ETA. Payment shall be issued to the applicable vendor IAW prompt payment act guidelines. The prompt payment clock begins when the COR certifies a valid invoice as correct. Payments taking longer than 30 days to process after receipt by G8 of a valid invoice shall incur interest IAW the Prompt Payment Act.

Invoice Documents (Dock week – Vessel)

Invoice documents shall be aligned with task orders issued for port handling services.

One task order, issued for each week for Doc-week work (i.e. rail, truck, stuffing, yard, and other non-vessel tasks).

Separate invoices shall be prepared and submitted associated with each of these Doc-week work orders.

- Rail Loading-discharging
- Truck Loading-discharging
- Stuffing - Unstuffing
- Yard work (cargo prep, transfers)
- other non-vessel tasks (Terminal work)

One task order shall also be issued for each vessel operation mission including all types of charges (commodity, man-hour and miscellaneous).

Service providers shall submit separate invoices:

- Commodity related charges
- Man-hour related charges
- Out of pocket (miscellaneous) charges.

Invoice documents shall be provided to the designated COR via email submission for certification purposes.

Each invoice document shall contain the following header data elements:

Header Level

- Vendor Number
- Vendor Site Name
- Vendor Address
- Vendor Bank Information
- Contractor Id
- Facility Code
- Task Order Number
- Invoice Payment Terms (Net 30)
- Invoice Number
- Invoice Date
- Invoice Total Dollar Amount
- Location

Required for vessel operations invoicing only “as applicable”

- Vessel Name (ocean vessel load & discharge only)
- Voydoc Number (load only)
- Vessel Number (discharge only)

- Vessel Operation Date From (DDMMYYYY)
- Vessel Operation Date To (DDMMYYYY)

Required for dock week invoicing only “as applicable”

- Dock Week Activity Date From (Rail, Truck, Stuffing, Yard, non-vessel)
- Dock Week Activity Date To (Rail, Truck, Stuffing, Yard, non-vessel)

****NOTE: (week number 1-52- and two-digit year) example week 2 of January 2022 = 0222**

Required for Out-Of-Pocket invoicing only “as applicable”

- Miscellaneous Activity Date From (DDMMYYYY)
- Miscellaneous Activity Date To (DDMMYYYY)

Invoice Line Level

- Schedule
- Commodity Code (Not required for man-hour or miscellaneous charges)
- Line-Item Id
- Contract Line Description
- Unit of Measure
- Quantity
- Unit Price
- Extended Amount

****NOTE: All Invoice Header Level and Invoice Line Level data elements without special shading are required for all invoices**

****NOTE: All Line Level info MUST match the template**

Substantiating Documents

- Task Order Template. Attach a copy of the completed signed, **final** Microsoft Excel task order template provided by the Ordering Officer for ordered services, for billing.
- Gates Tally Report. Used to support all commodity-based charges.
- Vendor receipts. For Out-of-Pocket charges, the Contractor shall provide vendor receipts supporting the miscellaneous charges paid.
- ARTRANS Form MT 288. Document man-hour charges, equipment rental usage, detention time, minimum, and stand by time. Summarized timesheet capturing total hours by labor category and equipment type shall be signed certified by the COR and the Contractor.

e. ARTRANS Form 290 (Overseas Ports Only) Associated cost charged back to a vessel, summarize extra labor (XL) by class/hourly rate/, and equipment by type/hourly rate, and total hours used. Summarized timesheet shall be submitted to usarmy.scott.sddc.mbx.g8-accounting-operations@army.mil.

Example: 4 stevedore x \$25.00 x .25min = \$25.00
1 7T-forklift x \$15.00 x .25min = \$3.75

****NOTE:** ALL 290s **MUST** be completed in their entirety; total costs associated with the charge backs. Incomplete 290s will be returned for completion.

Service Authorization Template (CONUS Ports Only) – Ports will complete the respective service authorization template for their port. This will be digitally signed and emailed to usarmy.scott.sddc.mbx.g8-accounting-operations@army.mil

Frequency of Invoice File Submission. The Contractor shall not submit invoices prior to Final TO template, issued by the OO, for payment, and no later than 30 days after completion of services.

APPENDIX D - Acronyms & Abbreviations

AGAR	U.S. Army Abbreviated Ground Accident Report
ALD	Available to Load Date
AQL	Acceptable Quality Level
AT	Antiterrorism
AUEL	Advanced Unit Equipment List
BCM	Basic Container Maintenance 101425
CAA	Competent Authority Authorization
CBA	Collective Bargaining Agreement
CBL	Commercial Bill of Lading
CDR	Contractor Deficiency Report
CDS	Cargo Distribution Section
CFR	Code of Federal Regulations
CFS	Container Freight Station
CHE	Container Handling Equipment
CLIN	Contract Line-Item Number
CLOP	Cargo Left on Pier
CO	Contracting Officer
CONUS	Continental United States
CSC	Convention for Safe Containers
DDMT	Deployment & Distribution Management Team
DDN	Defense Data Network
DFARS	DOD Supplement to the Federal Acquisition Regulation
DODAAC	Department of Defense Activity Address Code
DTS	Defense Transportation System
EA	Eighth United States Army
EAD	Earliest Arrival Date
EEFI	Essential Elements of Friendly Information
ERL	Expected Receipt Listing
EGS	Environmental Governing Standards
ETA	Estimated Time of Arrival
ETD	Estimated Time of Departure
FI	Free In
FO	Free Out

FP	Force Protection
FPCON	Force Protection Condition
GATES	Global Air Transportation Execution System
GBL	USG Bill of Lading
GFE	USG Furnished Equipment
GFI	USG Furnished Information
HDBK	Handbook
HERO	Hazards of Electromagnetic Radiation to Ordinance
HET	Heavy Equipment Transporter
IAW	In Accordance With
IBS	Integrated Booking System
IMDGC	International Maritime Dangerous Goods Code
IMO	International Maritime Organization
IPPC	International Plant Protection Convention (treaty)
ISPM	International Standard for Phytosanitary Measures
ISPS	International Ship Port Security
ISU	Internal Airlift/Helicopter Slingable Container Unit
JOCOTAS	Joint Committee on Tactical Shelters
LAD	Last Available Date
LIFO	Last in First Out
LL	Load List
LO/LO	Lift-On/Lift-Off
LOGMARS	Logistics Applications of Automated Marking and Reading Symbols
LOT	Indicating a specific quantity
LMT	A linear meter is a one-dimensional measurement of length, equivalent to a standard meter.
LRU	Less than Release Unit
LT	Long Ton (2,240#)
MHE	Material Handling Equipment
MRAP	Mine Resistant Ambush Protective
MSC	Military Sealift Command
MT	Metric Ton
MTON or M/T	Measurement Ton
NEW	Net Explosive Weight
NSN	National Stock Number
OCONUS	Outside Continental United States
OO	Ordering Officer
OOP	Out-of-Pocket
OPSEC	Operational Security
PFD	Personal Flotation Device
PII	Personal Identifiable Information
POC	Point of Contact
PPE	Personal Protection Equipment
PRS	Performance Requirement Summary
PSA	Port Support Activity
PSI	Physical Security Inspector
PSO	Physical Security Officer
RO/RO	Roll On/Roll Off
RT	Revenue Ton
SMO	Sealift Management Office
SPM	Single Port Manager
ST	Short Ton (2,000#)
STD	Standard
SU	Shipment Unit

TAC	Transportation Account Code
TCP	Manning Traffic Control Points
TEU	Twenty-foot Equivalent Unit
TFMS	Transportation Financial Management System
TID	Terminal Inventory Discrepancy
TMD	Terminal Management Division
TOS	Terminal Operations Section
UIC	Unit Identification Code
VGM	Verified Gross Mass
VPC	Vehicle Processing Center
VSF	Vessel Stow Factor
XL	Extra Labor

APPENDIX E - Foreign Entity Vetting

1. **Subcontractor Suitability.** The Contractors and any Subcontractor working on/for the Prime Contractor shall submit a semi-annual report to the contracting officer for each first-tier foreign transportation service provider, operating as a separate legal entity, contracting directly with Contractor or its commonly owned legal affiliate which has employees who may have physical contact with USG shipments in the ordinary course of contract performance. First tier foreign transportation service providers within scope include, but are not limited to: cargo handling services, and trucking companies. The initial report is due 30 calendar days after contract modification and every 6 months thereafter.

1.1 The report shall include the following information:

1.1.1 Legal Company Name (in native language if known)

1.1.2 Complete Address including Country

1.1.3 Name, phone number and e-mail address of at least one point of contact at the company

1.2 The report shall include the following information if it is commercially available in the Contractor's system:

1.2.1 Any Previous or Alternate Company Names

1.2.2 Fax number

1.2.3 Website URL

1.2.4 Owner(s)/Director(s) name(s) and e-mail address(es)

1.2.5 Manager(s) name(s) and e-mail address(es)

1.3 For foreign carriers that fall within the scope of the reporting requirement, Contractor shall provide a copy of business licenses required for the Contractor to legally operate in that country.

1.4 Contractor is not required to limit reporting solely to Subcontractors used for services under the contract, but rather, may provide a complete list of Subcontractors within scope in Contractor's network. Additionally, the Contractor shall be held to a collection and reporting standard measured by customary commercial practices; the USG acknowledges that this is a cooperative effort.

1.5 The Contractor is responsible for appropriately marking sensitive information as proprietary/trade secret. The USG will handle proprietary/trade secret information within the applicable statutes, rules, and regulations regarding the handling and release of such information.

1.6 Prior to contract performance and periodically throughout performance, the contracting officer will make available to the Contractor the name of active or potential Subcontractors determined to be unsuitable. The Contractor shall not allow named entities to perform any role in performance under this contract. If the Contractor chooses to terminate the unsuitable Subcontractor, the USG will not be liable for any costs incurred by the Contractor in establishing or terminating use of the unsuitable Subcontractor. The Contractor may choose not to terminate the unsuitable Subcontractor for use on its commercial contracts.

1.7 An unsuitable determination does not preclude the Contractor from nominating an unsuitable entity for reconsideration during the contract performance period. The Contractor is encouraged to provide the contracting officer additional information that may affect the Subcontractor's suitability. Any entity listed in the USG Consolidated Screening List (http://export.gov/ecr/eg_main_023148.asp) or otherwise prohibited per FAR Subpart 25.7, Prohibited Sources, will not be reconsidered.